

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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Date Purchased:

WILSON REYES, infant, by his mother and natural
guardian, FRANCES MENDEZ and FRANCES MENDEZ,
Individually,

SUMMONS

Plaintiff designates Bronx
County as the place of trial.

Plaintiff(s),

-against-

The basis of venue is:
Plaintiff's place of residence
and location of accident

THE CITY OF NEW YORK, NEW YORK CITY BOARD
and or DEPARTMENT OF EDUCATION, OLIVIA
FRANCIS -WEBBER, in her individual and official
capacities, NEW YORK CITY POLICE DEPARTMENT,
NYC P.O. "JOHN" COLLAZO (first name being fictitious
and presently unknown), in his individual and official
capacities, NYC P.O. "JOHN DOE" (name being fictitious
and presently unknown) in his individual and official
capacities,

Plaintiff resides at:
11165 Gerard Avenue
Bronx, NY 10452
County of **Bronx**

Defendant(s)

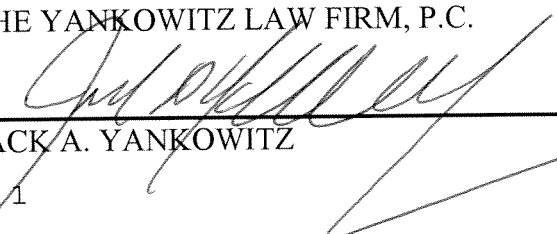
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: GREAT NECK, NEW YORK
June 10, 2013

THE YANKOWITZ LAW FIRM, P.C.



JACK A. YANKOWITZ

Attorneys for Plaintiff(s)
WILSON REYES, infant and
FRANCES MENDEZ
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200
Our File No. 7498 -12

TO:

THE CITY OF NEW YORK
The Comptroller of the City of New York
Municipal Building
1 Centre Street
New York, , NY 10007
and/or
NYC Law Department
100 Church Street
New York, New York

NEW YORK CITY POLICE DEPARTMENT
P.O. "JOHN" COLLAZO and "JOHN DOE"
1 Police Plaza
New York, New York
and/or
44TH Precinct
2 East 169th Street
Bronx, New York

NEW YORK CITY BOARD and/or DEPARTMENT OF EDUCATION
65 Court Street, Room 809
Brooklyn, New York 11201
and/or
NYC Law Department
100 Church Street
New York, New York

OLIVIA FRANCIS-WEBBER
65 Court Street, Room 809
Brooklyn, New York 11201
and/or
P.S. X114
1155 Cromwell Avenue
Bronx, NY 10452

and/or
NYC Law Department
100 Church Street
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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WILSON REYES, infant, by his mother and natural
guardian, FRANCES MENDEZ and FRANCES MENDEZ,
Individually,

VERIFIED COMPLAINT

Index No.:

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY BOARD
and/or DEPARTMENT OF EDUCATION, OLIVIA
FRANCIS -WEBBER, in her individual and official
capacities, NEW YORK CITY POLICE DEPARTMENT,
NYC P.O. "JOHN" COLLAZO (first name being fictitious
and presently unknown), in his individual and official
capacities, NYC P.O. "JOHN DOE" (name being fictitious
and presently unknown) in his individual and official
capacities,

Defendant(s)

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Plaintiffs, by their attorneys, **THE YANKOWITZ LAW FIRM, P.C.**, complaining of the
Defendants, respectfully allege upon information and belief:

PRELIMINARY STATEMENT

1. This is an action about the rights of students, and the 7 year old infant plaintiff,
WILSON REYES in particular, to be educated in a safe environment free from unnecessary and
excessive abuse, force and violent frightening encounters with armed New York City precinct based
Police Officers who are deployed and patrol New York City Public Schools, and P.S. X114, in
particular. The infant WILSON REYES, 7 years of age at the time of the subject incident, brings this
action against the defendants CITY OF NEW YORK, THE NEW YORK CITY BOARD and/or

DEPARTMENT OF EDUCATION, THE NYC POLICE DEPARTMENT, School Principal, OLIVIA FRANCIS-WEBBER, and NEW YORK CITY POLICE OFFICERS “ JOHN” (Shield # 21911) COLLAZO AND “ JOHN DOE”, who carelessly, recklessly and negligently deprived and violated the infant plaintiff’ s civil and constitutional rights and caused, permitted and allowed him to be falsely arrested and imprisoned, maliciously prosecuted, assaulted and battered, physically, verbally and emotionally abused, injured and damaged.

2. The Actions of the defendants were an unfortunate but inevitable result of the policies and practices of THE CITY OF NEW YORK, THE NEW YORK CITY BOARD and/or DEPARTMENT OF EDUCATION AND THE NEW YORK CITY POLICE DEPARTMENT governing the deployment of armed police officers into NYC Public Schools and their school yards.

3. In 1998 the defendant THE CITY OF NEW YORK adopted a memorandum of understanding (MOU) transferring school safety responsibilities from THE NEW YORK CITY BOARD and/or DEPARTMENT OF EDUCATION OF THE NEW YORK CITY POLICE DEPARTMENT.

4. Members of THE NEW YORK CITY BOARD and/or DEPARTMENT OF EDUCATION, engage in a policy and practice of unlawfully seizing, detaining and confining school children and causing, permitting and allowing their arrest and imprisonment for minor violations of school rules or conduct which does not constitute probable cause of criminal activity, in violation of the Fourth Amendment of the United States Constitution and New York State Law.

5. Members of the NYC Police Department, the New York Police Department School safety division and NYPD precinct-based officers assigned to and deployed to NYC public schools, engage in a policy and practice of unlawfully seizing and arresting NYC school children, in violation of the Fourth Amendment of the United States Constitution and New York State Law. This policy and practice manifests itself in several ways: arresting students for minor violations of school rules or for conduct that does not constitute probable cause of criminal activity, detaining those students off school grounds at police precincts, handcuffing students and detaining them in seclusion

rooms in school buildings, in police vehicles and using excessive and abusive force against school children.

6. A class action lawsuit against the City of New York, et al has been pending and in litigation for several years, on behalf of middle and high school students enrolled in NYC Public Schools, (UNITED STATES DISTRICT COURT, EASTERN DISTRICT OF NEW YORK, DOCKET # 10CV0210 (RRM) (ALC), challenging the aforesaid unconstitutional policies and practices of NYCPD and the defendants aforesaid policy, custom and usage under and pursuant to MOU.

7. Research demonstrates that law enforcement agencies frequently fail to account for the ways in which policing students in public schools differs from policing adults on the street. A study commissioned by the U.S. Department of Education found, “ One [of] the most frequent and destructive mistakes many programs make is to fail to define [law enforcement’ s] roles and responsibilities in detail before—or even after—the officers take up their posts in schools. When programs fail to do this, problems are often rampant in the beginning of the program—and often persist for months and even years.”

8. Such problems are endemic in New York City, where the 1998 MOU transferring school safety responsibilities to the NYPD failed to adequately define the roles and responsibilities of members of the NYPD or the NYC BOARD and/or DEPARTMENT OF EDUCATION, teachers, deans and principals. This failure by the City to institute an adequate school safety governance structure is evident in the challenged policy and practice of unlawfully seizing and arresting school children absent probable cause and in the challenged policy and practice of using excessive force against school children. Indeed, it is the stated policy of the NYPD that NYPD personnel should remove “ unruly” children from NYC public schools, yet the term “ unruly” has not been defined and no other limits to this policy or protocols respecting this policy, have been enunciated. This broad and undefined policy invites unconstitutional arrests of, and excessive force directed at, schoolchildren.

9. As a result of these unconstitutional policies and practices, NYC Public School students miss school and suffer psychological and physical injury. They also suffer ongoing harm. They face the humiliation and degradation of being paraded in handcuffs in front of their classmates and teachers and taken to seclusion rooms and to police precincts where they are handcuffed for hours. They face the humiliation and degradation of being hauled out of their schools in handcuffs—again in front of classmates and teachers—and being brought to police precincts for booking. Because the arrests made by NYPD personnel are often groundless, any resulting criminal cases are almost always dismissed and/or diverted to non-punitive processes. These subsequent dispositions do not mitigate the harm suffered by school children who are handcuffed, arrested, imprisoned and suspended from school.

10. The policies and practices challenged here constitute the official municipal policy of the Defendants CITY OF NEW YORK, the NEW YORK CITY BOARD and/or DEPARTMENT OF EDUCATION AND THE NEW YORK CITY POLICE DEPARTMENT. First, the seizures of students—by means of handcuffing, seclusion and/or formal arrest—for conduct or minor misbehavior that falls short of probable cause of criminal activity constitutes the official stated policy of the City-Defendants. Second, the unlawful seizures and arrests of, and use of excessive physical force against school children constitute municipal policy because they occur with such frequency as to amount to a custom and usage of the City-Defendants. Finally, City-Defendants’ failure to appropriately train and supervise the members of the NYPD or employees of the NYC BOARD and/or DEPARTMENT OF EDUCATION in order to address a known pattern of unconstitutional arrests and seizures, and the use of excessive force, amounts to deliberate indifference, thus constituting official municipal policy.

11. Members of the NYPD and employees of the NYC BOARD and/or DEPARTMENT OF EDUCATION engage in a pattern and practice of subjecting New York City public students to unlawful seizures and arrests by: (a) arresting students for minor violations of school rules or conduct that does not constitute probable cause of criminal activity, and removing and holding those

students on school grounds and off school grounds, often at police precincts; and (b) handcuffing students and detaining them in seclusion rooms in school buildings, for minor violations of school rules or conduct that does not constitute probable cause of criminal activity. Students who are arrested are then removed from schools, typically in handcuffs, and held at police precincts, or are transported to hospitals for emergency psychiatric evaluations in the absence of any legitimate cause for such evaluations. In addition, upon information and belief, a significant number of school children under the age of sixteen have been arrested at school for allegedly having committed non-criminal conduct or violations even though such arrests are prohibited by state law.

12. The challenged conduct by members of the NYPD and employees of the NYC BOARD and/or DEPARTMENT OF EDUCATION constitutes official municipal policy. First, the policy and practice of unlawfully seizing and arresting students for conduct or minor school misbehavior that does not amount to probable cause of criminal activity is the official stated policy of the NYPD, which broadly authorizes law enforcement personnel to remove “ unruly ” children from schools. Second, both challenged policies and practices—the unlawful seizures and arrests of, as well as the use of excessive force against, schoolchildren—are so widespread and frequent as to constitute a custom and usage of members of the NYPD and NYC BOARD and/or DEPARTMENT OF EDUCATION. Third, City-Defendants were well aware of, yet deliberately indifferent to, the prevalence of the challenged policies, failing to make meaningful attempts to improve the training and supervision of members of the NYPD and NYC BOARD OF EDUCATION employees. For each of these reasons, the aforesaid policies and practices are directly attributable to the Defendants, CITY OF NEW YORK, NYC BOARD and/or DEPARTMENT OF EDUCATION AND THE NYCPD.

13. The policy and practice of unlawfully seizing and arresting school children for conduct or minor misbehavior that does not establish probable cause of criminal activity constitutes the official policy of the defendant CITY OF NEW YORK, as set forth by the NYC Police Commissioner Raymond W. Kelly and the predecessor of Assistant Chief Thomas Chan,

Commanding Officer of the NYPD School Safety Division, both of whom have or had final decision-making authority in these matters.

14. On June 11, 2007, defendant Police Commissioner Kelly submitted a letter to New York City Councilmember Robert Jackson indicating that the duties of NYPD School Safety Officers include “ removing unruly students” and “ enforc[ing] the rules and regulations” of the “ Student Disciplinary Code.”

15. Likewise, on October 10, 2007, James Secreto, then an Assistant Chief and the Commanding Officer of the NYPD School Safety Division (and Thomas Chan’ s predecessor), submitted a written statement to the New York City Council, stating that School Safety Officers are responsible for “ removing unruly” students from public schools.

16. In this context, the removal of an “ unruly” student by members of the NYPD constitutes a seizure and/or arrest; students are not free to leave once seized and/or arrested, and often they are transported to a local police precinct even when they have done nothing more than arguably violate school rules in a non-criminal matter. In addition, although neither Defendant Kelly nor former Assistant Chief Secreto further defined the term “ unruly”, as a matter of logic and plain language, the term encompasses conduct or minor misbehavior that does not amount to probable cause of criminal activity.

17. In these ways, the policy and practice of unlawfully seizing and arresting school children for conduct or minor school misbehavior, absent probable cause of criminal activity, constitutes official municipal policy, as articulated by officials with final decision-making authority in these matters. This widespread and frequent actions by members of the NYPD and NYC BOARD and/or DEPARTMENT OF EDUCATION occur as part of a larger pattern and practice of unlawfully seizing and arresting students absent probable cause, and of using excessive force against school children that is so prevalent as to amount to a custom and usage of the Defendants, CITY OF NEW YORK, NYC BOARD and/or DEPARTMENT OF EDUCATION AND NYCPD.

18. City-Defendants have been aware of the pervasive nature of the pattern and

practice by members of the NYPD and employees of the NYC BOARD and/or DEPARTMENT OF EDUCATION of unlawfully seizing and arresting schoolchildren, and the pattern and practice of subjecting them to excessive force. Yet, City-Defendants have been deliberately indifferent to these patterns and practices, and have not attempted to remedy them.

19. City-Defendants also have had actual knowledge of these patterns and practices for several years from numerous sources, including but not limited to,

(1) Class action suit filed by attorneys on behalf of the New York Civil Liberties Union Foundation, the American Civil Liberties Union Foundation and Dorsey & Whitney LLP, in the U.S. District Court, Eastern District, B.H. on behalf of her minor daughter D.B. et al v. City of New York, et al, Docket # 10CV0210 (RRM)(ALC) and the evidence and documentation exchanged therein prior to February 15, 2012.

(2) In March 2007, the New York Civil Liberties Union and the American Civil Liberties Union published a report titled *Criminalizing the Classroom: The Over-Policing of New York City Schools*, documenting instances of abuses by members of the NYPD School Safety Division. Upon information and belief, the NYCPD and all senior personnel within the NYPD School Safety Division received copies of the *Criminalizing the Classroom* report.

(3) City-Defendants obtained further knowledge of the challenged patterns and practices through the publication of other reports documenting abuses by members of the NYPD, *See e.g.* Drumm Major Institute for Public Policy, *A look at the Impact Schools* (June 2005); Kevin P. Brady, Sharon Balmer and Deinya Phenix, *School-Police Partnership Effectiveness in Urban Schools: An Analysis of New York City' s Impact Schools Initiative* (Education and Urban Society, Aug. 2007); National Education and Social Rights Initiative and Teachers Unite, *Teachers Talk: School Culture, Safety and Human Rights* (Oct. 2008); and Urban Youth Collaborative, *Bill of Rights* (2006).

(4) City-Defendants also obtained actual knowledge of the

pattern and practice by members of the NYPD of unlawfully arresting schoolchildren, based on letters submitted by the American Civil Liberties Union and the New York Civil Liberties Union to Defendant Police Commissioner Kelly dated October 7, 2008 and November 4, 2008. These letters documented that a significant number of schoolchildren under the age of sixteen have been arrested at school for non-criminal violations even though such arrests are prohibited by state law.

(5) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from media reports. For example, the New York Daily News reported on June 19, 2008 that an NYPD School Safety Officer handcuffed a five-year old boy and transported him to a psychiatric hospital, without parental consent, after the boy threw what was described as a “ temper tantrum.” Likewise, on March 10, 2008, the New York Daily News reported that an NYCPD School safety Officer handcuffed two four-year old boys for refusing to take a nap.

(6) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from complaints filed with the IAB regarding conduct by members of the NYPD.

(7) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from notices of claims and complaints asserted against them prior to December 4, 2012, regarding the conduct of members of the NYPD and the NYC BOARD OF EDUCATION for incidents involving the unlawful seizure, arrest, imprisonment, handcuffing and use of excessive force, verbal, physical and emotional abuse of children in the NYC Public School system.

(8) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from the New York City Council hearing held on October 10, 2007 regarding the NYPD School Safety Division, Former Assistant Chief James Secreto was present at this hearing and testified on behalf of himself and Defendant Police Commissioner Kelly. At that hearing, a number of children offered testimony regarding abuses suffered at the hands of NYCPD School Safety Officers as described above. At the same hearing, Gregory Floyd, the

president of the union representing all School Safety Offices, testified that he agreed with the statement that “ we need to have more mediation training, more conflict resolution, knowing [sic] how to diffuse [sic] situations among not only staff and teachers and administrators, but also for students...”

(9) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from the New York City Council hearing held on November 10, 2009 regarding the NYPD School Safety Division. Former Assistant Chief James Secreto was present at this hearing and testified on behalf of himself and Defendant Police Commissioner Kelly. During that hearing, testimony was offered regarding the unlawful seizures, arrests, and beatings of a number of children.

20. Notwithstanding this detailed knowledge of the patterns and practices challenged here, City-defendants have failed to undertake any meaningful attempt to curtail these patterns and practices, in blatant disregard of the rights of New York City public schoolchildren.

FACTS

21. That on December 4, 2012 while the seven (7) year old infant plaintiff WILSON REYES was in his third grade class (3-314) at P.S. X114, located at 1155 Cromwell Avenue,. Bronx, NY, he was directed, caused, permitted and allowed to be removed from his class by the defendants, CITY OF NEW YORK, NEW YORK CITY BOARD and/or DEPARTMENT OF EDUCATION, OLIVIA FRANCIS-WEBBER (Principal of P.S. X114) and the 7 year old infant was seized, confined and imprisoned by said defendants, their agents, servants and/or employees in a room at said school.

22. That in said room, the 7 year old infant plaintiff, WILSON REYES was met by defendants NEW YORK CITY POLICE OFFICER “ JOHN” COLLAZO (first name being fictitious and presently unknown) and NYC Police Officer “ JOHN” DOE (first name being fictitious and

presently unknown and other unidentified NYC Police Officers, all of whom were uniformed and bearing weapons.

23. That the defendants, their agents, servants and/or employees falsely imprisoned and confined the 7 year old infant WILSON REYES in said room for approximately 4 hours, where this 7 year old child was interrogated, intimidated, threatened verbally, emotionally and physically abused, humiliated, embarrassed and defamed by said defendants, their agents, servants and/or employees.

24. That in the aforesaid confinement room at P.S. X114, the defendants, their agents, servants and/or employees falsely accused the 7 year old infant WILSON REYES of taking and robbing 5 dollars from a 9 year old student named “ Seth Acevedo” 5 days earlier on November 30, 2012, after school hours and off of school grounds.

25. That the defendants OLIVIA FRANCIS-WEBBER, NYC P.O. “ JOHN” COLLAZO and other unidentified NYCPD Officers were advised by the 7 year old infant WILSON REYES that he committed no crime and had not taken any money from Seth Acevedo.

26. That thereafter, the defendants received corroboration and possessed information and knowledge that the 7 year WILSON REYES did not rob or take any money from Seth Acevedo, from a third student “ Javonne McCleod” who confessed reaching into and taking 5 dollars from the pocket of Seth Acevedo on November 30, 2012.

27. Thereafter, on December 4, 2012 the defendants, their agents, servants and/or employees arrested the 7 year old child WILSON REYES, charged him with 2 counts of robbery under Penal Law Sections 160:05 and 160:10, handcuffed 7 year old Wilson and removed him from P.S. X114 and placed him into a NYC Police vehicle in view of the child’ s friends, other students, teachers, school employees and other persons, and brought this child to the NEW YORK CITY POLICE DEPARTMENT 44th Pct.

28. The defendants, their agents, servants and/or employees further caused, permitted And allowed the false arrest and imprisonment of 7 year WILSON REYES at the 44th Pct. for approximately 6 more hours, where this child was kept handcuffed to a wall (see photograph annexed hereto and made a part hereof), interrogated, verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed; the defendant, NYC P.O. COLLAZO and other unidentified NYC Police Officers at the 44th Pct. repeatedly verbally terrified and abused 7 year old WILSON REYES, calling him a “ thief” and a “ robber” and threatening to send him away to prison with the “ big boys”.

29. The aforesaid false arrest and imprisonment of the 7 year old plaintiff WILSON REYES was made without a warrant and without probable cause to believe a crime was committed; at no time did the defendants ever read, explain or advise the 7 year old child WILSON REYES or his mother, plaintiff FRANCES MENDEZ of their Constitutional and Miranda rights.

30. The defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, 44th Pct, P.O. COLLAZO and other unidentified police officers failed and refused to contact and notify the 7 year old child WILSON REYES’ mother, FRANCES MENDEZ of said arrest and imprisonment; after approximately 5 hours of imprisonment, where 7 year old WILSON REYES was verbally, physically and emotionally abused, the infant’ s mother FRANCES MENDEZ was permitted to see her child for only several minutes and then she was forced to leave the 44th Pct. by said defendants and she was denied access to her child; the child’ s false imprisonment in handcuffs and the aforesaid threats, intimidation and abuse continued for another 5 hours; the 7 year old child WILSON REYES was denied and deprived of his civil rights both State and Federal, (including but not limited to 42USC § 1983, 1981 and the Fourth Amendment of the United States Constitution), was refused access to his mother and guardian, FRANCES MENDEZ, refused access to an attorney and was verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by P.O. COLLAZO, other NYCPD Officers at the 44th Pct. and the NYCPD.

31. Upon information and belief, at the 44th Pct. the defendants CITY OF NEW YORK, NYCPD, Police Officers “JOHN” COLLAZO AND “JOHN DOE”, their agents, servants and/or employees interrogated, falsely arrested and imprisoned the 7 year old infant plaintiff WILSON REYES, and treated him like a hardened criminal; he was placed into a room and handcuffed to a wall for approximately 6 hours; he was threatened, verbally and emotionally abused, intimidated, humiliated; he was denied access to legal counsel; he was denied access and permission to see, speak with his mother FRANCES MENDEZ, the child was caused to remain isolated, scared, crying and terrified, handcuffed for 6 hours to a wall in an isolated room, tortured physically, psychologically and emotionally.

32. At all times herein mentioned, the defendants, NYCPD, P.O. COLLAZO, “JOHN DOE”, their agents, servants and/or employees were aware that the 7 year old infant plaintiff WILSON REYES committed no crime and there was no probable cause for his arrest; the NYCPD, defendants COLLAZO and “JOHN DOE” used excessive, abusive and unnecessary force, falsely and unnecessarily arrested, handcuffed and imprisoned the 7 year old infant plaintiff for approximately 10 hours; THERE WAS NO WARRANT FOR THE INFANT PLAINTIFF’ S ARREST.

33. At all times herein mentioned, the 7 year old infant plaintiff WILSON REYES presented no danger to himself or anyone else, including the defendants COLLAZO and “JOHN DOE”; this 7 year old child had no weapons and provided no resistance to his aforesaid arrest, handcuffing and imprisonment.

34. The defendants issued an Appearance ticket to the infant plaintiff, requiring court appearances by the plaintiffs.

35. On December 26, 2012 the defendant CITY OF NEW YORK, Law Dept., Office of the Corporation Counsel, refused to file a petition and refused to file any charges against the 7 year old infant plaintiff, WILSON REYES.

36. The defendants, CITY OF NEW YORK, NYC BOARD and/or DEPARTMENT OF EDUCATION and OLIVIA FRANCIS-WEBBER further victimized, intimidated, humiliated and emotionally and psychologically abused the 7 year old infant plaintiff, WILSON REYES by causing, permitting and allowing the issuance of a 5 day suspension from school of this child.

37. On December 4, 2012, the defendant OLIVIA RANCIS-WEBBER intentionally, maliciously and with gross negligence, carelessness and recklessness, issued a 5 day suspension of the 7 year old WILSON REYES from school. (A copy of said suspension Notice dated December 5, 2012 is annexed hereto and made a part hereof). The said notice dated December 5, 2012 “ required the presence” of Frances Mendez in the Dean’ s office room G-2 at 8:30 AM on December 5, 2012 “ to discuss the incident and decide, collaboratively, satisfactory solutions”. The said notice was (1) issued by defendant OLIVIA FRANCIS-WEBBER AFTER the time of the scheduled secret “ Principal’ s Suspension Conference” and (2) was issued by defendant OLIVIA FRANCIS-WEBBER in English, when she and P.S. X114 had knowledge and were aware that plaintiff FRANCES MENDEZ dos not speak, read or write English. No conference occurred and defendant OLIVIA FRANCIS-WEBBER again victimized and unilaterally and without merit suspended the 7 year old child, WILSON REYES.

38. Upon information and belief, on and before December 4, 2012, the NYC BOARD and/or DEPARTMENT OF EDUCATION , PS X114, OLIVIA FRANCIS-WEBBER as well as their employees and agents Ms. Pena, Guidance Counselor (name presently unknown) and Dean of Students (name presently unknown) were aware that:

- 1) In early October 2012 9 year old Seth Acevedo was involved in an altercation with 7 year old WILSON REYES after Seth Acevedo made derogatory remarks and statements to WILSON REYES about his mother Frances Mendez.
- 2) That thereafter in October 2012, the mother of Seth Acevedo, Janet Ramos, during a conference at P.S. X114, admitted, stated and advised the NYC Board and/or Department of Education, P.S. X114 and Olivia Francis-Webber and other employees at P.S. X114, that prior to October 2012 Seth Acevedo had been the victim of bullying by children at PS X114 and not by 7 year old WILSON REYES.

- 3) That after the aforesaid altercation in October 2012 and prior to said conference, Janet Ramos wrote a letter, sent it to P.S. X114 which was received by P.S. X114 and its Principal, Olivia Francis-Webber, the Dean and Guidance Counselor, wherein, upon information and belief, she threatened to assault and hit the 7 year old infant WILSON REYES until he bleeds and until he is dead. That Janet Ramos, upon information and belief, was confronted with said letter at the aforesaid conference and she admitted writing and sending it to P.S. X114.
- 4) That, upon information and belief, on December 4, 2012, based upon false, meritless and frivolous accusations by Janet Ramos and without investigation and evaluation, and without contacting and notifying the mother and guardian of 7 year old WILSON REYES, the School Principal Olivia Francis-Webber caused, permitted and allowed 7 year old infant WILSON REYES to be removed from his third grade class to be confined and imprisoned in a room within PS X114 with several uniformed NYC Police Officers as stated herein above. See NYC Department of Education records dated December 3, 2004 and December 4, 2004 annexed hereto and incorporated herein by reference)
5. That within a short time thereafter, Olivia Francis-Webber became fully aware that the claims and accusations of Janet Ramos, and Seth Acevedo against 7 year old WILSON REYES were false and without merit, yet, she caused, permitted and allowed the continued confinement, imprisonment, interrogation and arrest of the 7 year old child WILSON REYES inside P.S. X114 for 4 hours, she failed and refused to call the child's mother Frances Mendez and she permitted and allowed 7 year old WILSON REYES to be removed from said school by the aforesaid NYC Police Officers into a police vehicle and taken to the 44th Pct., where he was falsely imprisoned, handcuffed and abused for approximately 6 hours.
6. At all times herein mention above, Olivia Francis-Webber, Principal of PS X114 failed and refused to protect the health and welfare of the 7 year old child WILSON REYES, refused and failed to notify his mother and guardian Frances Mendez and was an accomplice and complicit in the false arrest, imprisonment, denial of his civil and constitutional rights and the verbal, physical and emotional abuse, intimidation and humiliation of the 7 year old child, WILSON REYES.

39. The 7 year old WILSON REYES, is the victim who was falsely confined, arrested, imprisoned and handcuffed, in P.S. X114 and the 44th Pct., for a total of approximately 10 hours, and physically, psychologically, emotionally abused, intimidated, threatened, humiliated and deprived of his Civil and Constitutional rights and subject to unconscionable, unnecessary and excessive physical, emotional and psychological abuse by Olivia Francis-Webber, NYC Board and/or Department of Education, PS X114, defendant COLLAZO and other police officers of the NYCPD 44th Pct., The City

of New York and the New York City Police Department, their agents, servants and/or employees.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF WILSON REYES

40. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

41. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a Department, Agency and/or Division of the defendant CITY OF NEW YORK, a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

42. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY BOARD and/or DEPARTMENT OF EDUCATION, was and still is a Department, Agency and/or Division of the defendant CITY OF NEW YORK, a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

43. That at all times herein mentioned, the plaintiffs were and still are residents at 1165 Gerard Avenue, Bronx, NY 10452, County of Bronx, City and State of New York.

44. Upon information and belief, that at all times herein mentioned, the defendant, OLIVIA FRANCIS-WEBBER was and still is a resident of the State of New York.

45. Upon information and belief, that at all times herein mentioned, the defendant, JOHN" COLLAZO (Shield # 21911), was and still is a resident of the State of New York.

46. Upon information and belief, that at all times herein mentioned, the defendant, " JOHN" DOE was and still is a resident of the State of New York.

47. Upon information and belief, that at all times herein mentioned, the defendant OLIVIA

FRANCIS-WEBBER was employed by the defendants CITY OF NEW YORK and/or NYC BOARD and/or DEPARTMENT OF EDUCATION and her conduct and actions set forth in this Complaint were in the course of her employment and in her official and individual capacity.

48. Upon information and belief, that at all times herein mentioned, the defendant “JOHN” COLLAZO (Shield # 21911) was employed by the defendants CITY OF NEW YORK and/or NYCPD and his conduct and actions set forth in this Complaint were in the course of his employment and in his official and individual capacity.

49. Upon information and belief, that at all times herein mentioned, the defendant “JOHN DOE” was employed by the defendants CITY OF NEW YORK and/or NYCPD and his conduct and actions set forth in this Complaint were in the course of his employment and in his official and individual capacity.

50. That the plaintiffs have complied with all of the conditions precedent to the bringing of this action against the defendants and have complied with the provisions of the statute in such cases made provided; in particular plaintiffs have presented and served Notices of Claims hereinafter mentioned (copies of which are annexed hereto and incorporated herein by reference) upon the defendants on January 28, 2013 and February 28, 2013, and more that thirty 30 days have elapsed since the presentation of said claims and the claims remain unadjusted and the defendants have failed and/or refused to make any adjustments of same.

51. That plaintiffs, pursuant to the defendants’ request for 50H hearing, appeared on April 17, 2013 and gave testimony.

52. That this action is being commenced within one year and ninety days of the occurrence complained herein.

53. This action falls within one or more of the exceptions set forth in CPLR § 1602.

54. The Defendants, CITY OF NEW YORK, THE BOARD and/or DEPARTMENT OF

EDUCATION, OLIVIA FRANCIS-WEBBER, their agents, servants and/or employees, departments, agencies and those acting under their directions behest and control, were careless, reckless and negligent in their failure to properly investigate and/or evaluate the results of any investigation; in being careless, reckless and negligent in hiring, supervising, managing and controlling the principal of P.S. X114, defendant OLIVIA FRANCIS-WEBBER and those persons, agents, servants and/or employees hired to operate, manage, control, supervise, teach provide guidance, discipline at and/or run said School and protect the health and welfare of the public school children thereat, and 7 year old WILSON REYES in particular; in failing to hire efficient and/or sufficient personnel in connection with the operation, management, control, teaching at and/or supervision of said School; in failing to train their employees so as to enable them to provide adequate, safe and proper guidance, discipline and to control students and/or persons at said school; in failing to adequately train their employees so as to enable them to control students and/or persons at said school; in failing to properly and/or adequately supervise the teaching curriculum, guidance and/or activities provided by and/or at said School; in failing to promulgate proper and/or adequate rules and regulations governing the proper teaching curriculum, guidance, discipline, safety and/or supervision to be provided and rendered by those agents, servants and/or employees hired to operate, manage, control, supervise, teach at, provide guidance and/or run said School; in failing to promulgate proper and/or adequate rules and/or regulations governing the proper care, guidance and/or supervision to be provided and rendered to those utilizing said Public School; in failing to properly and/or adequately monitor the care, guidance and/or supervision provided at said School; in failing to properly and/or adequately provide guidance for and/or supervise and protect the health and welfare of the infant plaintiff, WILSON REYES; in failing to properly and/or adequately monitor and/or supervise the activities in which the infant plaintiff was involved in on the

day of the incident; in failing to control students, in failing to prevent and/or stop inappropriate activity; in failing to adequately and properly investigate and evaluate claims and accusations regarding students at said school; in failing to adequately and properly monitor, supervise and control the conduct and actions of Olivia Francis-Webber; in failing to promulgate, enforce and provide proper and adequate rules and regulations regarding childish behavior and misbehavior of Public School children and students, which are fair, constitutional and in accordance with their Civil Rights and which prevent any injury and damage to the health and welfare of the children under their care and prevent unnecessary physical, emotional and psychological abuse, injury and damage; the 7 year old child WILSON REYES was not properly protected from the aforesaid conduct, actions, intimidation and abuse by OLIVIA FRANCIS-WEBBER; in causing, permitting and allowing the seizure, confinement, false arrest, handcuffing and imprisonment of the 7 year old infant plaintiff WILSON REYES on school grounds, to and at the 44TH Pct.; in carelessly, recklessly and negligently failing to prevent the aforesaid incident; the 7 year old child WILSON REYES was not properly protected from the aforesaid conduct, actions, intimidation and abuse by defendant OLIVIA FRANCIS-WEBBER.

55. The defendants CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. “JOHN” COLLAZO, “P.O. JOHN DOE”, their agents, servants and/or employees were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its officers, agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the 7 year old infant plaintiff, WILSON REYES; in falsely detaining, arresting and imprisoning the said 7 year old infant plaintiff in a careless, reckless and negligent manner; in negligently, carelessly

and recklessly failing to prevent the aforesaid incident; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the 7 year old child, infant for approximately 10 hours, deprivation of his civil and constitutional rights and denial of access to his mother and guardian; in that they failed to employ adequate, competent personnel, training, supervision, management, control and inspection; in that they managed, supervised, maintained and controlled their police officers and investigators, with a reckless disregard for the health, safety and welfare of said 7 year old infant plaintiff WILSON REYES; in that they failed to employ sufficient and adequate personnel and employees. That the CITY of NEW YORK, the NYCPD and the NYCPD 44th PCT., defendants COLLAZO and “JOHN DOE”, their agents, servants and employees on and before December 4, 2012 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the defendants, CITY OF NEW YORK, NYCPD, THE NYCPD 44th Pct., and the Police officers of the 44th Pct., of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias and physical force and a disregard regarding the health, welfare and safety of children, specifically the 7 year old infant WILSON REYES herein. The aforesaid actions and conduct by defendants THE NEW YORK CITY POLICE DEPARTMENT 44th Pct., NYC P.O. “JOHN” COLLAZO and the unidentified police officers of NYCPD 44th Pct., their false arrest and imprisonment of 7 year old WILSON REYES, the isolating, imprisoning, handcuffing, denial and deprivation of his civil rights, their denial and refusing access to this 7 year old child to his mother, plaintiff FRANCES MENDEZ while keeping the child handcuffed to a wall, occurred pursuant to the practice of the defendants CITY OF NEW YORK, NYCPD AND THE 44th Pct., Police Officers and P.O. COLLAZO of abuse, physical force and deprivation of Civil

Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. The CITY OF NEW YORK, NYCPD and NYCPD 44TH PCT., failed to adequately and properly train the defendant “ JOHN” COLLAZO and the aforesaid unidentified police officers of the 44thPct., with a deliberate indifference to the Civil Rights of the infant 7 year old WILSON REYES and his mother, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, the 44th PCT., their agents, servants and/or employees deprived the said plaintiffs, the 7 year old child, WILSON REYES and his mother, FRANCES MENDEZ, of due process and violated their Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations of the City and State of New York and the United States of America/Federal Government. Defendant’ s THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, “ JOHN” COLLAZO, “ JOHN DOE”, their agents, servants and/or employees maliciously assaulted and handcuffed the 7 year old plaintiff, verbally abused and humiliated and embarrassed the 7 year old, WILSON REYES and defamed his character. Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, P.O. “ JOHN” COLLAZO and “ JOHN DOE” and other unidentified NYCPD officers wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said 7 year old infant, WILSON REYES, handcuffed him for extended hours of time, falsely arrested him and deprived him of his liberty, violated his civil rights, isolated him and deprived him access to his parents and guardians, denied him access to legal counsel and verbally physically and emotionally abused, defamed, humiliated, intimidated and embarrassed this 7

year old child; all of which caused and inflicted serious injury and damage to the 7 year old plaintiff, WILSON REYES, herein set forth.

56. That as a result of the aforesaid incident the 7 year old infant plaintiff, WILSON REYES was caused to sustain serious and severe personal injuries, emotional and psychological damage.

57. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff WILSON REYES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

58. That the said occurrence and the injuries and damages to the 7 year old infant plaintiff, WILSON REYES, resulting therefrom were caused solely and wholly by reason of the carelessness, recklessness and negligence of the defendants, their agents, servants and/or employees.

59. That by reason of the foregoing, the infant plaintiff, WILSON REYES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE
INFANT PLAINTIFF, WILSON REYES

60. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1 - 59 with the same force and effect as though the same were more fully set forth at length hereat.

61. The defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of unreasonably seizing and unlawfully arresting New York City public school students, and 7 year old infant plaintiff WILSON REYES in particular, absent probable cause of criminal activity in violation of the Fourth and Fourteenth Amendments to the United States Constitution and without a warrant.

62. Defendants, OLIVIA FRANCIS-WEBBER, NYC P.O. "JOHN" COLLAZO AND NYC P.O. "JOHN DOE" are liable pursuant to 42 U.S.C. § 1983 for unreasonably confining, detaining, seizing and unlawfully arresting and imprisoning the 7 year old infant plaintiff, WILSON REYES, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

63. The defendants, their agents, servants and/or employees deprived the 7 year old infant plaintiff, WILSON REYES of due process and violated his Civil Rights under the Constitution and Laws of the State of New York and the United States of America, as well as all applicable Civil Rights Statutes, Laws, Ordinances, rules and regulations of the City and State of New York and the United States of American Federal Government.

64. This action falls within one or more of the exceptions set forth in CPLR § 1602.

65. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness

and recklessness of the defendants, their agents, servants and/or employees the 7 year old infant plaintiff WILSON REYES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

66. That by reason of the foregoing, the infant plaintiff, WILSON REYES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF WILSON REYES**

67. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1-66 with the same force and effect as though the same were more fully set forth at length hereat.

68. The defendants, their agents, servants and/or employees wrongfully, unlawfully, maliciously assaulted, handcuffed, humiliated, embarrassed, seized, confined and imprisoned the infant plaintiff at his school (P.S. X144), in a police vehicle and at the NYCPD 44th Pct. for approximately 10 hours, in view of his friends, students, neighbors, teachers, relatives and

others, causing him severe personal injuries.

69. The defendants CITY OF NEW YORK, NYC BOARD and/or DEPARTMENT OF EDUCATION AND

THE NYCPD are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of using excessive force against New York City public school children and students and the 7 year old infant plaintiff, WILSON REYES in particular, violation of the Fourth and Fourteenth Amendments to the United States Constitution.

70. Defendants NYC P.O.”JOHN” COLLAZO and “JOHN DOE” are liable pursuant to 42 U.S.C. § 1983 for using excessive force against the 7 year old infant plaintiff, WILSON REYES in violation of the Fourth and Fourteenth Amendment to the United States Constitution.

71. Defendants OLIVIA FRANCIS-WEBER, is liable pursuant to 42 U.S.C. § 1983 for causing, permitting and allowing the use of excessive force against the 7 year old infant plaintiff, WILSON REYES in violation of the Fourth and Fourteenth Amendment to the United States Constitution.

72. That the defendants, their agents, servants and/or employees acted under color of State Law to deprive the 7 year old infant plaintiff WILSON REYES of his right to be free of excessive force as guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution as enforced by 42 U.S.C. § 1983.

73. This action falls within one or more of the exceptions set forth in CPLR § 1602.

74. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the 7 year old infant plaintiff WILSON REYES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

75. That by reason of the foregoing, the infant plaintiff, WILSON REYES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF WILSON REYES**

76. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1-75 with the same force and effect as though the same were more fully set forth at length hereat.

77. That the defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of committing abuses against New York City public school students and the 7 year old infant plaintiff, WILSON REYES, depriving him of substantive due

process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

78. Defendants OLIVIA FRANCIS-WEBBER, “JOHN” COLLAZO and “JOHN DOE” are liable pursuant to 42 U.S.C. § 1983 for abuses against the 7 year old infant plaintiff, WILSON REYES, depriving him of substantive due process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

79. This action falls within one or more of the exceptions set forth in CPLR § 1602.

80. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the 7 year old infant plaintiff WILSON REYES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

81. That by reason of the foregoing, the infant plaintiff, WILSON REYES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF WILSON REYES**

82. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-81 with the same force and effect as though the same were more fully set forth at length hereat.

83. By their actions, as set forth in this complaint and exhibits annexed, the defendants, their agents, servants and/or employees, in their official and individual capacities, acted under color of State Law to deprive the 7 year old infant plaintiff, WILSON REYES of his right to be free from false arrest and false imprisonment as guaranteed by the Fourth and Fourteenth Amendments of the Federal Constitution, as enforced by to 42 U.S.C. § 1983.

84. This action falls within one or more of the exceptions set forth in CPLR § 1602.

85. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the 7 year old infant plaintiff WILSON REYES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United

States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

86. That by reason of the foregoing, the infant plaintiff, WILSON REYES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF WILSON REYES**

87. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-86 with the same force and effect as though the same were more fully set forth at length hereat.

88. The defendants CITY OF NEW YORK, NYC BOARD and/or DEPARTMENT OF EDUCATION AND NYCPD are liable for the unreasonable seizures and unlawful arrests of New York City public school children and students and the 7 year old infant plaintiff WILSON REYES in particular, in violation of Article 1 § 12 of the New York Constitution.

89. Defendants, P.O. "JOHN" COLLAZO and "JOHN DOE" are liable pursuant to Article 1 § 12 of the New York Constitution for unreasonable seizure and unlawful arrest of the infant 7 year old plaintiff, WILSON REYES.

90. Defendants, OLIVIA FRANCIS-WEBER is liable pursuant to Article 1 § 12 of the New York Constitution for causing, permitting and allowing the unreasonable seizure and unlawful arrest of the 7 year old infant plaintiff, WILSON REYES.

91. This action falls within one or more of the exceptions set forth in CPLR § 1602.

92. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the 7 year old infant plaintiff WILSON REYES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

93. That by reason of the foregoing, the infant plaintiff, WILSON REYES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF WILSON REYES**

94. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-93 with the same force and effect as though the same were more fully set forth at length hereat.

95. The Defendants, CITY OF NEW YORK, NYC BOARD and/or DEPARTMENT OF EDUCATION and NYCPD are liable for the false arrest of New York City public school

children and students and the 7 year old infant plaintiff, WILSON REYES in particular, in violation of New York Law.

96. Defendants, P.O. COLLAZO and "JOHN DOE" are liable for the false arrest of the 7 year old infant plaintiff, WILSON REYES in violation of New York State law.

97. Defendant, OLIVIA FRANCIS-WEBBER is liable for causing, permitting and allowing the false arrest of the 7 year old infant plaintiff, WILSON REYES in violation of New York State law.

98. This action falls within one or more of the exceptions set forth in CPLR § 1602.

99. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the 7 year old infant plaintiff WILSON REYES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

100. That by reason of the foregoing, the infant plaintiff, WILSON REYES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A EIGHTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF WILSON REYES

101. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-100 with the same force and effect as though the same were more fully set forth at length hereat.

102. The Defendants, CITY OF NEW YORK, NYC BOARD and/or DEPARTMENT OF EDUCATION and NYCPD are liable for the assault and battery of New York City public school children and students and the 7 year old infant plaintiff, WILSON REYES in particular, in violation of New York Law.

103. Defendants, P.O. COLLAZO and “JOHN DOE” are liable for the assault and battery of the 7 year old infant plaintiff, WILSON REYES in violation of New York State law.

104. Defendant, OLIVIA FRANCIS-WEBBER are liable for causing, permitting and allowing the assault and battery of the 7 year old infant plaintiff, WILSON REYES in violation of New York State law.

105. This action falls within one or more of the exceptions set forth in CPLR § 1602.

106. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the 7 year old infant plaintiff WILSON REYES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights

guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

107. That by reason of the foregoing, the infant plaintiff, WILSON REYES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A NINETH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF WILSON REYES**

108. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-107 with the same force and effect as though the same were more fully set forth at length hereat.

109. That all accusations and charges against the 7 year old infant plaintiff, WILSON REYES were false which was at all times known to the defendants, their agents, servants and/or employees.

110. That the defendants, their agents, servants and/or employees falsely arrested, imprisoned and maliciously prosecuted the 7 year old infant plaintiff, WILSON REYES and as a result of defendants abuse of process, the infant plaintiff was caused and subjected to great indignation and humiliation, embarrassment, pain and distress of mind and body and suffered injury and damage and defamation of his good name and reputation in the community, among his friends, neighbors, teaches and others.

111. This action falls within one or more of the exceptions set forth in CPLR § 1602.

112. That as a result of the defendants aforesaid conduct, actions, negligence, Carelessness and recklessness of the defendants, their agents, servants and/or employees the 7 year old infant plaintiff WILSON REYES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

113. That by reason of the foregoing, the infant plaintiff, WILSON REYES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF WILSON REYES**

114. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-113 with the same force and effect as though the same were more fully set forth at length hereat.

115. That the defendants aforesaid actions, conduct, handcuffing, threatening, verbal and physical abuse, intimidation, humiliation, false arrest and imprisonment of the 7 year old

infant plaintiff, WILSON REYES for approximately 10 hours was such a conscious and deliberate disregard of the interests and welfare of this 7 year old child that their conduct and actions were willful and wanton.

116. As a result of the defendants and their agents, servants and/or employees' intentional, concerted, conspired, wanton, malicious, egregious and shocking actions and conduct and their gross negligence and recklessness as set forth in this complaint, the infant plaintiff, WILSON REYES claims punitive damages against the defendants.

117. This action falls within one or more of the exceptions set forth in CPLR § 1602.

118. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the 7 year old infant plaintiff WILSON REYES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

119. That by reason of the foregoing, the infant plaintiff, WILSON REYES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A ELEVENTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF FRANCES MENDEZ**

120. Plaintiff FRANCES MENDEZ repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-119 with the same force and effect as though the same were more fully set forth at length hereat.

121. At all times herein mentioned, the plaintiff FRANCES MENDEZ was and still is the mother and natural guardian of the 7 year old infant plaintiff, WILSON REYES and was entitled to the services, society and companionship of the 7 year old infant plaintiff, WILSON REYES.

122. That by reason of the forgoing, plaintiff FRANCES MENDEZ has been deprived of the services, society and companionship of the infant plaintiff, WILSON REYES and caused to incur and continues to incur expenses and costs for his medical care and treatment for injuries and damages caused by the defendants' aforesaid conduct, actions, carelessness, recklessness and negligence.

123. The plaintiff FRANCES MENDEZ sustained and continue to suffer pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress unconscionable depravation and denial of due process and their Civil Rights guaranteed under the Constitution of the United States of America and the State of New York, as well as the Civil rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of American/Federal Government.

124. That by reason of the forgoing, plaintiff FRANCES MENDEZ has been damaged in a sum which exceeds the jurisdictional limits of all lower costs which would

otherwise have jurisdiction and this plaintiff further claims punitive damages against the defendants as a result of their intentional, concerted, conspired, wanton, malicious, egregious and shocking actions and conduct and their gross negligence and recklessness as set forth in this Complaint.

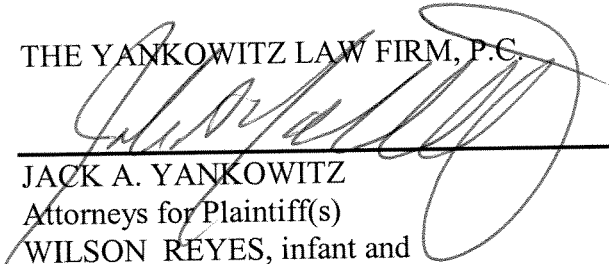
125. This action falls within one or more of the exceptions set forth in CPLR § 1602.

126. That by reason of the foregoing, the plaintiff, FRANCES MENDEZ, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs demand judgment against the defendants on the FIRST, SECOND, THIRD, FOURTH, FIFTH, SIXTH, SEVENTH, EIGHTH, NINTH, TENTH AND ELEVENTH CAUSES OF ACTION, for damages in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction in all Actions, together with costs, attorney fees and disbursements of these actions.

Dated: GREAT NECK, NEW YORK
June 10, 2013

THE YANKOWITZ LAW FIRM, P.C.



JACK A. YANKOWITZ
Attorneys for Plaintiff(s)
WILSON REYES, infant and
FRANCES MENDEZ
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200
Our File No. 7498 -12

ATTORNEY'S VERIFICATION

JACK A. YANKOWITZ, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

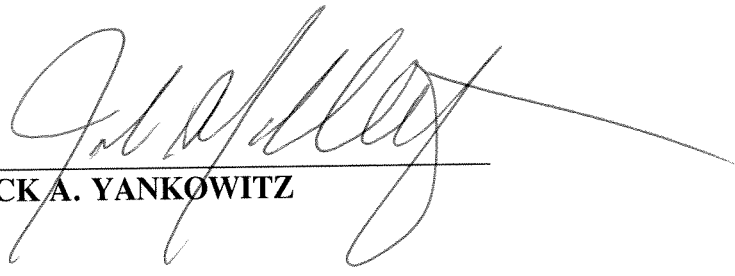
I am an attorney at THE YANKOWITZ LAW FIRM, P.C., attorneys of record for Plaintiff(s), infant, **WILSON REYES and FRANCES MENDEZ** in the action within. I have read the annexed

SUMMONS AND COMPLAINT

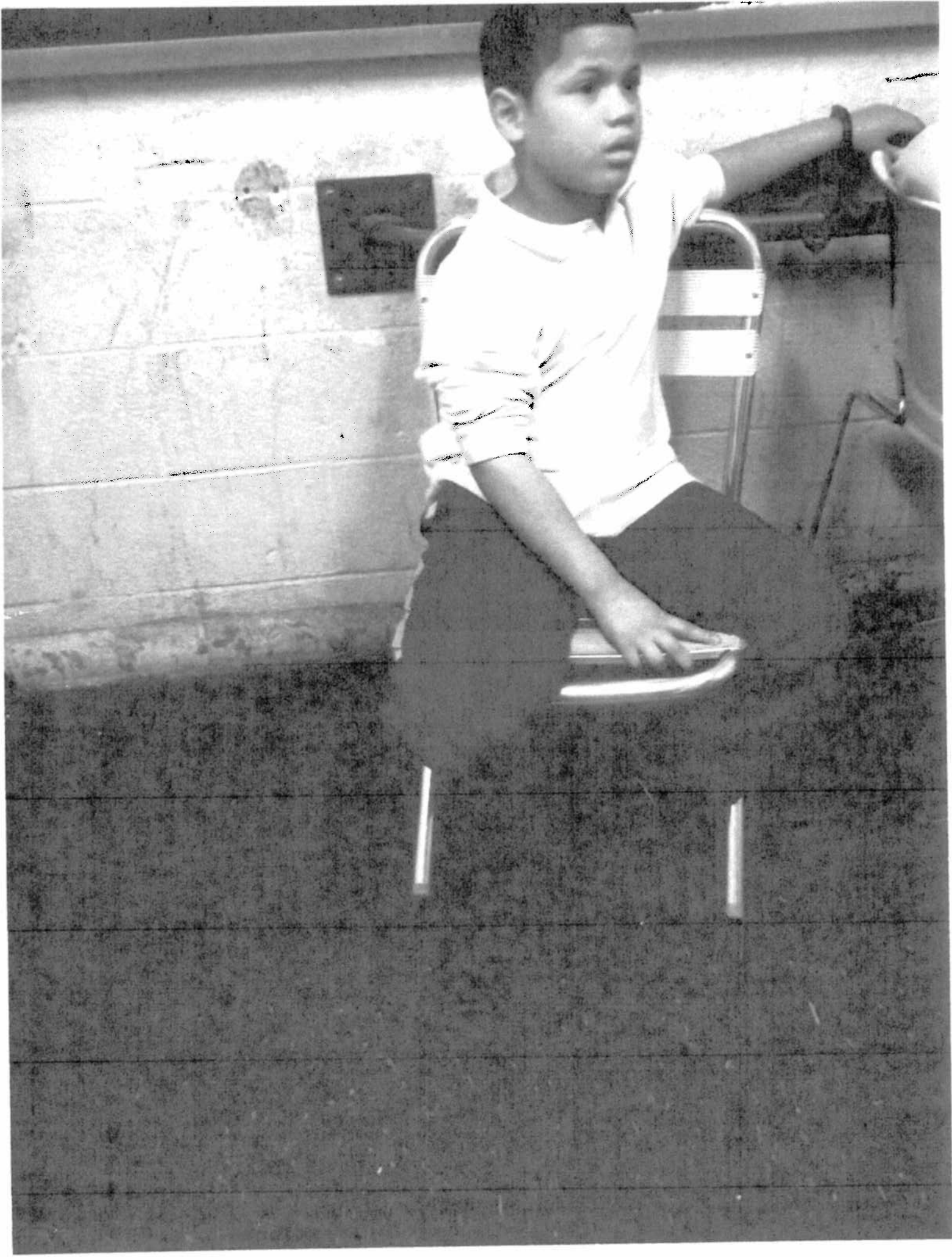
and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

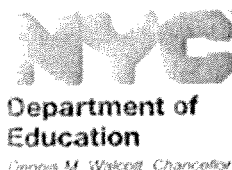
The reason this verification is made by me and not Plaintiff(s) is that Plaintiff(s) is/are not presently in the county wherein the attorneys for the Plaintiff(s) maintain their offices.

DATED: Great Neck, NY
June 10, 2013



JACK A. YANKOWITZ





Office of Safety and Youth Development
Elayna Konstan, Chief Executive Officer

52 Chambers Street
Room 218
New York, NY 10007

OSYDDATA@schools.nyc.gov
+718 935 5004 tel

OCCURRENCE REPORT

DOE CONTROL NO. 09X114-113012-0024	NYPD CONTROL NO. none supplied
--	--

ATS CODE 09X114	SCHOOL AND/OR PROGRAM NAME/NUMBER P.S. X114 - Luis Llorens Torres Schools On the Way Home			INCIDENT DATE & TIME 11/30/2012 2:30 PM	DURING SCHOOL HOURS? No
REPORT Update	BOROUGH Bronx	SUPERINTENDENCY	GEOGRAPHICAL DISTRICT 9	IS THIS REPORT FOR INFORMATION ONLY:	

Occurrence Reported by: T Yahn (Phone:718-681-7507)

Occurrence Data Entered at: 12/3/2012 at 1:00 PM

Location of the Occurrence: Close Proximity to the School

Category: A40

Contacts: NYPD was not contacted
Superintendent was not contacted.

Bias Related: No

Description of the occurrence

Today, Seth Acevedo of class 3-309 claimed that his classmate Jayvonne McLeod and Wilson Reyes of class 3-314 allegedly reached into his sweater pocket on Friday November 30th 2012 around 2:30 PM and took a total of five dollars from his sweater pocket. Seth further claimed that Wilson punched him in the face and invited him to fight. Seth's mother came to the school around 1:00 PM to discuss this matter.

Disciplinary action will be taken from the administration.

Persons Involved

Suspects

MCLEOD, JAVONNE - GradeLevel: 03

Bronx Address: 1068 GERARD AVENUE 6B, BRONX, NY 10452 Phone: 347-818-1498

Parental contact (Ms. McLeod) was attempted on 12/3/2012.

A statement has been prepared by this suspect.

REYES, WILSON - GradeLevel: 03

Bronx Address: 1165 GERARD AVENUE 3P, BRONX, NY 10452 Phone: 718-716-2953

Parental contact (Ms. Reyes) was attempted on 12/3/2012.

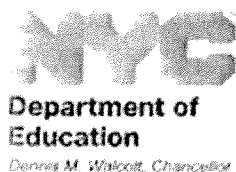
Victims

ACEVEDO, SETH - GradeLevel: 03

Bronx Address: 1175 WALTON AVENUE BSMT, BRONX, NY 10452 Phone: 646-401-6724

Parents made contact on 12/3/2012.

A statement has been prepared by this victim.



Office of Safety and Youth Development
Elayna Konstan, Chief Executive Officer

OSYDDATA@schools.nyc.gov
+718 935 5004 tel

52 Chambers Street
Room 218
New York, NY 10007

OCCURRENCE REPORT

DOE CONTROL NO. 09X114-120412-0026	NYPD CONTROL NO. none supplied
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ATS CODE 09X114	SCHOOL AND/OR PROGRAM NAME/NUMBER P.S. X114 - Luis Llorens Torres Schools			INCIDENT DATE & TIME 12/4/2012 1:30 PM	DURING SCHOOL HOURS? Yes
REPORT Original	BOROUGH Bronx	SUPERINTENDENCY	GEOGRAPHICAL DISTRICT 9	IS THIS REPORT FOR INFORMATION ONLY:	

Occurrence Reported by: Olivia Francis Webber-Principal

Occurrence Data Entered at: 12/4/2012 at 3:14 PM

Location of the Occurrence: Close Proximity to the School

Category: A40

Contacts: NYPD was contacted at 1:30 PM on 12/4/2012
Superintendent was not contacted.

Bias Related: No

Description of the occurrence

Two male students, Wilson Reyes (DOB-12/16/04) and Javonne McLeod (DOB-3/9/03) were transported to the 44 pct by PO Callazo for Robbery and Assault. On Friday 11/30/12 after school they robbed a male student, Seth of \$5 and punched him in the face. No injuries were reported. Incident #09X114-113012-0024 was entered by administration.

Persons Involved

Suspects

MCLEOD, JAVONNE - GradeLevel: 03

Address: 1068 GERARD AVENUE 6B, BRONX, NY 10452 Phone: 347-818-1498

Officer: PO Callazo , Precinct 44). This Suspect was accompanied to the Precinct by Family Worker

Parents (mother) were notified on 12/4/2012.

REYES, WILSON - GradeLevel: 03

Address: 1165 GERARD AVENUE 3P, BRONX, NY 10452 Phone: 718-716-2953

Officer: PO Callazo, Shield #21911, Precinct 44). This Suspect was accompanied to the Precinct by Family Worker

Parents (mother) were notified on 12/4/2012.

Victims

ACEVEDO, SETH - GradeLevel: 03

Address: 1175 WALTON AVENUE BSMT, BRONX, NY 10452 Phone: 646-401-6724

Parents have not been notified.

NOTICE OF CLAIM

-----X
In the Matter of the Claim of

WILSON REYES, Infant, by
FRANCES MENDEZ parent and natural guardian,
and FRANCES MENDEZ Individually

- against -

THE CITY OF NEW YORK,
NEW YORK CITY BOARD OF EDUCATION, P.S. X114 AND
OLIVIA FRANCIS-WEBBER

-----X

TO: The Comptroller of the City of New York
Municipal Building
New York, New York 10007

NEW YORK CITY BOARD OF EDUCATION, P.S. X114 AND
OLIVIA FRANCIS-WEBBER
65 Court Street, Room 809, Brooklyn, New York 11201

P.S. X114
1155 CROMWELL AVENUE, BRONX, 10452

PLEASE TAKE NOTICE that the undersigned claimant hereby makes
claim and demands against you as follows:

1. Name and post office address of each claimant and claimants'
attorneys is:

Claimant

WILSON REYES, infant
FRANCES MENDEZ
1165 Gerard Avenue
Bronx, NY 10452

Attorney

THE YANKOWITZ LAW FIRM, PC
175 East Shore Road
Great Neck, NY 11023
(516)622-6200

2. The nature of the claim: To recover money damages for
personal injuries, pain and suffering, emotional and psychological
damages, humiliation, intimidation, embarrassment, defamation of
character, medical expenses and related damages, deprivation of
Civil Rights, complicity, causing, permitting and allowing the
false arrest and false imprisonment, assault and battery,
malicious prosecution and all damages permitted by Statute and
Case Law, incurred by and on behalf of the 7 year old infant
claimant WILSON REYES, and punitive damages, by reason of his
false arrest/false imprisonment, deprivation of Civil Rights,
assault and battery, malicious prosecution, physical, verbal and

emotional abuse, excessive force and abuse, complicity in causing excessive and unnecessary infliction of physical, verbal and emotional abuse, confinement, imprisonment, denial of due process and the negligence, carelessness and recklessness committed by THE CITY OF NEW YORK, NEW YORK CITY BOARD OF EDUCATION, P.S. X114 and OLIVIA FRANCIS-WEBBER.

3. The time when, the place where and the manner in which the Claim arose: Upon information and belief, the claim arose on December 4, 2012 at approximately 10:00 AM while the infant claimant, WILSON REYES 7 years of age, was in his third grade class (3-314) at P.S. X114 located at 1155 Cromwell Avenue, Bronx, NY 10452. At said time, date and place, the 7 year old infant claimant, WILSON REYES, was caused, permitted and allowed to be removed from his class, by Olivia Francis-Webber (Principal of P.S. X114) placed into a room at said school, where he was met by NYCPD P.O. Collazo and other police officers who placed the 7 year old infant, WILSON REYES under arrest. The 7 year old infant, WILSON REYES was kept imprisoned in said room at PS X114 for 4 hours, handcuffed, and then taken by said NYCPD officers to the 44 Pct., where he was further false imprisoned for approximately another 6 hours. During the aforesaid false imprisonment, the 7 year old infant, WILSON REYES was handcuffed and verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by Olivia Francis-Webber, other employees of the NYC Board of Education, PS X114, P.O. COLLAZO and other police officers/employees and agents of the NYCPD and 44th Pct., whose identities are presently unknown. The NYCPD, the NYCPD 44th Pct., PO COLLAZO, the said other police officers of the 44th Pct., their agents, and/or employees used excessive and unnecessary force, falsely imprisoned and falsely arrested the 7 year old child WILSON REYES and falsely accused him of being "a thief" and taking 5 dollars from another 7 year old child named "Seth Acevedo" on November 30, 2012 after school; and falsely arrested and charged the 7 year old WILSON REYES as an adult with 2 counts of robbery under penal law Sections 160:05 and 160:10.

At all times following and during the false confinement and arrest and imprisonment, handcuffing and deprivation of the civil rights of the of the 7 year old child, WILSON REYES, inside of P.S. X114 and in the 44th Pct., Olivia Francis-Webber, P.O. COLLAZO and the other aforesaid unidentified NYC police officers and NYCPD, 44TH Pct. and their agents and employees possessed information and knowledge that the robbery claims and accusations against the 7 year old child WILSON REYES were false and without merit as 7 year old WILSON REYES advised them, and same was corroborated by another 3rd grade child named "Javon" whom was interrogated by said police officers and who stated to them and to Olivia Francis-Webber and other employees and agents of the NYC Board of Education and P.S. X114, that he had taken the 5 dollars from "Seth Acevedo" and the 7 year old WILSON REYES was not involved. (The aforesaid police officers also handcuffed and arrested "Javon"). The aforesaid false arrest and imprisonment of

the 7 year old WILSON REYES was made without a warrant and without probable cause to believe a crime was committed.

At said time, date and place, OLIVIA FRANCIS-WEBER (Principal at P.S. X114) caused 7 year old infant WILSON REYES to be removed from his scheduled school activity, brought to a room in said school, and without notifying the child's parent and guardian Frances Mendez, without permission from the child's mother and guardian, Frances Mendez and without legal representation, caused, permitted and allowed an interrogation by NYC P.O. COLLAZO and other uniformed NYC police officers. The principal, Olivia Francis-Weber confined the 7 year old WILSON REYES and caused, permitted and allowed the 7 year old child to be intimidated and verbally abused and threatened by the police with arrest and imprisonment.

That the NYC Board of Education, P.S. X114, OLIVIA FRANCIS-WEBBER and their agents, servants and/or employees were careless, reckless and negligent in their failure to properly investigate and/or evaluate the results of any investigation, and the relevant information, documents and files in their possession and control on and before December 4, 2012. On and before December 4, 2012, the NYC Board of Education, PS X114, OLIVIA FRANCIS-WEBBER as well as their employees and agents Ms. Pena, Guidance Counselor (name presently unknown) and Dean of Students (name presently unknown) were aware that:

- 1) In early October 2012 9 year old Seth Acevedo was involved in an altercation with 7 year old WILSON REYES after Seth Acevedo made derogatory remarks and statements to WILSON REYES about his mother Frances Mendez.
- 2) That thereafter in October 2012, the mother of Seth Acevedo, Janet Ramos, during a conference at P.S. X114, admitted, stated and advised the NYC Board of Education, P.S. X114 and Olivia Francis-Webber and other employees at P.S. X114, that prior to October 2012 Seth Acevedo had been the victim of bullying by children at PS X114 and not by 7 year old WILSON REYES.
- 3) That after the aforesaid altercation in October 2012 and prior to said conference, Janet Ramos wrote a letter, sent it to P.S. X114 which was received by P.S. X114 and its Principal, Olivia Francis-Webber, the Dean and Guidance Counselor, wherein, upon information and belief, she threatened to assault and hit the 7 year old infant WILSON REYES until he bleeds and until he is dead. That Janet Ramos, upon information and belief, was confronted with said letter at the aforesaid conference and she admitted writing and sending it to P.S. X114.
- 4) That, upon information and belief, on December 4, 2012, based upon false, meritless and frivolous accusations

by Janet Ramos and without investigation and evaluation, and without contacting and notifying the mother and guardian of 7 year old WILSON REYES, the School Principal Olivia Francis-Webber caused, permitted and allowed 7 year old infant WILSON REYES to be removed from his third grade class to be confined and imprisoned in a room within PS X114 with several uniformed NYC Police Officers as stated herein above.

5. That within a short time thereafter, Olivia Francis-Webber became fully aware that the claims and accusations of Janet Ramos were false and without merit, yet, she caused, permitted and allowed the continued confinement, imprisonment, interrogation and arrest of the 7 year old child WILSON REYES inside P.S. X114 for 4 hours, she failed and refused to call the child's mother Frances Mendez and she permitted and allowed 7 year old WILSON REYES to be removed from said school by the aforesaid NYC Police Officers into a police vehicle and taken to the 44th Pct., where he was falsely imprisoned, handcuffed and abused for approximately 6 hours.
6. At all times hereinmention above, Olivia Francis-Webber, Principal of PS X114 failed and refused to protect the health and welfare of the 7 year old child WILSON REYES, refused and failed to notify his mother and guardian Frances Mendez and was an accomplice and complicit in the false arrest, imprisonment, denial of civil rights and the verbal, physical and emotional abuse, intimidation and humiliation of the 7 year old child, WILSON REYES.

THE CITY OF NEW YORK, THE NYC BOARD OF EDUCATION, P.S. X114, its employee OLIVIA FRANCIS-WEBBER and other employees and agents of said P.S. X114, THE NYC POLICE DEPARTMENT, the 44th Pct., P.O. COLLAZO and other NYC officers whose identities are presently unknown, falsely and unnecessarily confined, imprisoned, verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed the 7 year old infant, WILSON REYES; they caused, permitted and allowed the arrest, excessive and unnecessary force and handcuffing of this child as aforesaid.

At all times following and during the aforesaid, confinement, false arrest and imprisonment, handcuffing and deprivation of the civil rights of the of the 7 year old child, WILSON REYES, OLIVIA FRANCIS-WEBBER and the other aforesaid unidentified employees and agents of the NYC Board of Education and PS X114 and their agents and employees possessed information and knowledge that the claims and accusations against the 7 year old child WILSON REYES were false and without merit and he had not committed a criminal act. The aforesaid false arrest and imprisonment of the 7 year old WILSON REYES was made without a warrant and without probable cause

to believe a crime was committed and the 7 year old child was no danger to himself or others.

The NYCPD, 44TH Pct., the NYC Board of Education, PS X114, OLIVIA FRANCIS-WEBBER (School Principal) and certain other unidentified school employees, failed and refused to permit the 7 year old WILSON REYES to have access, contact or communication with his mother FRANCES MENDEZ during the entire time the child was imprisoned, confined and imprisoned at P.S. X114. The 7 year old child WILSON REYES was denied and deprived of his civil rights both State and Federal, (including but not limited to 42USC § 1983, 1981 and the Fourth Amendment of the United States Constitution), was refused access to his mother and guardian, FRANCES MENDEZ, refused access to an attorney and was verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by OLIVIA FRANCIS-WEBBER, THE NYC BOARD OF EDUCATION AND P.S. X114.

THE CITY OF NEW YORK, THE BOARD OF EDUCATION, P.S. X114, OLIVIA FRANCIS-WEBBER, their agents, servants and/or employees, departments, agencies and those acting under their directions behest and control, were careless, reckless and negligent in their failure to properly investigate and/or evaluate the results of any investigation; in being careless, reckless and negligent in hiring, supervising, managing and controlling the principal of P.S. X114, and of those persons, agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to hire efficient and/or sufficient personnel in connection with the operation, management, control, teaching at and/or supervision of said School; in failing to train their employees so as to enable them to control students and/or persons in classrooms; in failing to adequately train their employees so as to enable them to control students and/or persons in classrooms; in failing to properly and/or adequately supervise the teaching curriculum, guidance and/or activities provided by and/or at said School; in failing to promulgate proper and/or adequate rules and regulations governing the proper teaching curriculum, guidance and/or supervision to be provided and rendered by those agents, servants and/or employees hired to operate, manage, control, supervise, teach at, provide guidance and/or run said School; in failing to promulgate proper and/or adequate rules and/or regulations governing the proper care, guidance and/or supervision to be provided and rendered to those utilizing said Public School; in failing to properly and/or adequately monitor the care, guidance and/or supervision provided at said School; in failing to properly and/or adequately provide guidance for and/or supervise the infant claimant herein; in failing to properly and/or adequately monitor and/or supervise the activities in which the infant claimant was involved in on the day of the incident; in failing to control students, in failing to prevent and/or stop inappropriate activity; in failing to adequately and properly investigate and evaluate claims and accusations regarding students at said school; in failing to

adequately and properly monitor, supervise and control the conduct and actions of Olivia Francis-Webber; in failing to promulgate, enforce and provide proper and adequate rules and regulations regarding childish behavior and misbehavior of Public School children and students, which are fair, constitutional and in accordance with their Civil Rights and which prevent any injury and damage to the health and welfare of the children under their care and prevent unnecessary physical, emotional and psychological abuse, injury and damage; the 7 year old child WILSON REYES was not properly protected from the aforesaid conduct, actions, intimidation and abuse by OLIVIA FRANCIS-WEBBER.

The 7 year old WILSON REYES, is the victim who was falsely confined, arrested, imprisoned and handcuffed, in P.S. X114, the 44th Pct., for a total of approximately 10 hours, and physically, emotionally abused, intimidated, humiliated and deprived of his Civil and Constitutional rights and subject to unconscionable, unnecessary and excessive physical, emotional and psychological abuse by Olivia Francis-Webber, NYC Board of Education, PS X114 and the police officers of the NYCPD 44th Pct., The City of New York and the New York City Police Department.

On December 4, 2012, Olivia Francis-Webber intentionally, maliciously and with gross negligence, carelessness and recklessness, issued a 5 day suspension of the 7 year old WILSON REYES from school. (A copy of said suspension Notice dated December 5, 2012 is annexed hereto and made a part hereof). The said notice dated December 5, 2012 "required the presence" of Frances Mendez in the Dean's office room G-2 at 8:30 AM on December 5, 2012 "to discuss the incident and decide, collaboratively, satisfactory solutions". The said notice was (1) issued by Olivia Francis-Webber AFTER the time of the scheduled secret "Principal's Suspension Conference" and (2) was issued by Olivia Francis-Webber in English, when she and P.S. X114 had knowledge and were aware that claimant Frances Mendez does not speak, read or write English. No conference occurred and Olivia Francis-Webber again victimized and unilaterally and without merit suspended the 7 year old child, WILSON REYES.

The NYC Board of Education, P.S. X114 and its Principal Olivia Francis-Webber continued to victimize and traumatize the 7 year old child WILSON REYES and his mother Frances Mendez, by this unconscionable, frivolous and meritless school suspension, denial of their due process, Constitutional Civil Rights and continued intentional infliction of emotional and psychological abuse, intimidation and humiliation. A copy of the Notice of Claim filed against the CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT 44TH PCT, P.O. COLLAZO, et al is annexed hereto and incorporated herein by reference.

4. The infant Claimant WILSON REYES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity,

embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of due process and his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment and legal counsel. The 7 year old infant claimant, WILSON REYES, has suffered damages in the sum of ONE HUNDRED MILLION DOLLARS (\$100,000,000.00).

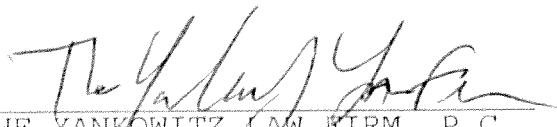
Infant Claimant WILSON REYES further claims punitive damages in the amount of ONE HUNDRED MILLION (\$100,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, false imprisonment, school suspension, physical, verbal, emotional and psychological abuse inflicted upon the 7 year old infant claimant and the aforesaid deprivation of the Civil and Constitutional Rights of the 7 year old infant claimant, WILSON REYES, a 7 year old who was lawfully sitting in his 3rd grade classroom on December 4, 2012, by THE CITY OF NEW YORK, the NYC BOARD OF EDUCATION, OLIVIA FRANCIS-WEBBER, P.S. X114, their agents, servants and employees.

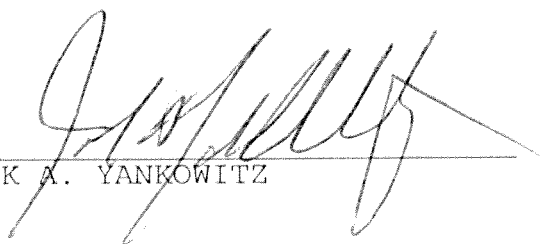
The claimant, FRANCES MENDEZ sustained and continues to suffer pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress, unconscionable deprivation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant FRANCES MENDEZ was caused to incur and continues to incur expenses for medical attention and treatment on behalf of her son, the infant claimant, WILSON REYES and she has suffered damages in the sum of TWENTY FIVE MILLION DOLLARS (\$25,000,000.00).

Claimant FANCES MENDEZ further claims punitive damages in the amount of TWENTY FIVE MILLION (\$25,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon her son, infant claimant WILSON REYES and the aforesaid deprivation of her Civil and Constitutional Rights and those of her son infant claimant, WILSON REYES, a 7 year old who was lawfully sitting in his 3rd grade classroom on December 4, 2012, by THE CITY OF NEW YORK, P.S. X114, their agents, servants and employees.

The undersigned and claimants herein therefore present these claims for adjustment and payments. You are hereby notified that unless said claims are adjusted and paid within the time provided by law from the date of presentation to you, the claimants intend to commence an action on these claims.

Dated: Great Neck, New York
February 26, 2013

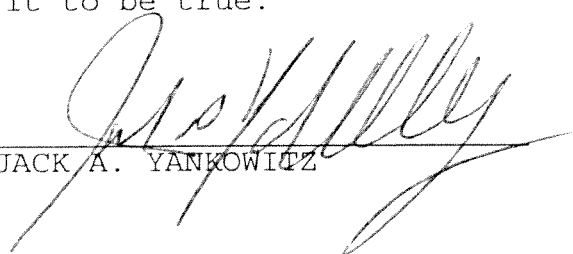

THE YANKOWITZ LAW FIRM, P.C.
Attorney for Claimant
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200


JACK A. YANKOWITZ

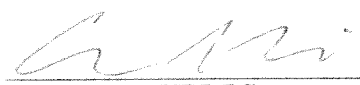
VERIFICATION

STATE OF NEW YORK
SS.:
COUNTY OF NASSAU }

JACK A. YANKOWITZ, being duly sworn, deposes and says that deponent is the attorney for the above-named claimants; deponent has read the foregoing NOTICE OF CLAIM and know its contents; the same is true to deponent's knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters deponent believes it to be true.


JACK A. YANKOWITZ

Sworn to before me on
February 26, 2013


NOTARY PUBLIC

ANDREW S. KOENIG
Notary Public, State of New York
No. 01K06043885
Qualified in Nassau County
Certificate Filed in Suffolk County
Commission Expires June 26, 20 14



LUIS LLORENS TORRES CHILDREN'S ACADEMY
P.S. K114

1155 Cromwell Avenue, Bronx, New York 10452
Phone # (718) 681-7507 Fax # (718) 681-7519

Mrs. Olivia Francis-Webber
Principal

Mr. George Ault
Assistant Principal

Mrs. Fabatha Williams-Moore
Assistant Principal

24 HOURS NOTICE OF PRINCIPAL'S SUSPENSION

December 5, 2012

1165 GERARD AVENUE 3P
BRONX, NEW YORK 10452

Dear Ms. Mendez:

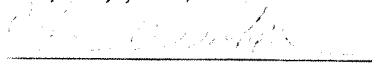
I regret that it has become necessary to suspend your child, Wilson Reyes, of class 3-314, for five days for the following reason: on Friday, November 30, 2012, at approximately 2:30 PM after school Wilson exhibited physically aggressive behavior towards another student while he was in route to his home (A-40). During the suspension period, your child is to attend the PS 230, 275 Harlem River Park Bridge, Bronx, NY 10453; Telephone #: (718) 583-6116. The suspension period is from December 6 to 12, 2012. He should return to PS 114X on December 13, 2012 at 8:30 A.M.

A Principal's Suspension Conference has been scheduled for Wednesday, December 5, 2012 at 8:30 A.M. in the Deans' office room G-2. Your presence is required to discuss the incident and devise, collaboratively, satisfactory solutions to address this behavior. Please arrive promptly and bring your child with you. If you are unable to keep this appointment, please call the school to arrange for a mutually convenient time. If your preferred language or mode of communication is not English and a translator is required, you should bring a translator to the conference.

At the conference, you and your child have the right to question persons involved in the incident for which your child was suspended; to present witnesses and documentary evidence; and to be accompanied by up to two advisors. These advisors may be attorneys or advocates. All participants may act in accordance with the informal nature of the conference.

If you believe your child has a disability and school officials had knowledge that your child was a child with a disability before the misbehavior that resulted in the disciplinary action occurred, you may ask for the protections that the Individuals with Disabilities Education Act provide. If your child is a child with a disability receiving special education services and/or related services, you have certain protections under the law. You should refer to the Procedural Safeguards Notice. If you do not have a copy, you may request a copy from the school by contacting Ms. Williams, Assistant Principal, at (718) 681-7507 extension 2250.

Very truly yours,


Olivia Francis-Webber, Principal

APPEAL PROCEDURE: Following the conference, you may appeal the suspension decision by writing to Ms. Dolores Esposito, Regional Superintendent, at 1 Fordham Plaza, Bronx, N.Y. 10458 within ten (10) days of the suspension, setting forth the grounds for appeal and the relief requested.

Attachments: Notice of IDEA Protections
Foreign Language Notice
Cc: Dolores Esposito, Regional Superintendent

Chancellor's Regulation A-443

NOTICE OF CLAIM

-----X
In the Matter of the Claim of

WILSON REYES, an Infant,
by his mother and natural guardian
FRANCES MENDEZ, and
FRANCES MENDEZ, Individually

- against -

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT.
THE NEW YORK CITY POLICE DEPARTMENT 44TH PRECINCT
P.O. COLLAZO, SHIELD # 21911
AND OTHER POLICE OFFICERS OF THE 44TH PCT WHOSE NAMES
AND IDENTITIES ARE PRESENTLY UNKNOWN

-----X

TO: Comptroller of the City of New York
Municipal Building •
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10013

P.O. Collazo
c/o New York City Police Department
44th Precinct
1 Police Plaza
New York, NY 10013

NEW YORK CITY POLICE DEPARTMENT 44TH PRECINCT
c/o NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10013

1. Name and post office address of each claimant and claimants' attorneys is:

Claimant

WILSON REYES, an infant
FRANCES MENDEZ
1165 Gerard Avenue
Bronx, NY 10452

Attorney

THE YANKOWITZ LAW FIRM, P.C.
175 East Shore Road
Great Neck, NY 11023
(516) 622-6200

2. The nature of the claim: To recover money damages for personal injuries, pain and suffering, emotional and psychological damages, humiliation, embarrassment, defamation of character, medical expenses and related damages, deprivation of Civil Rights, false arrest and false imprisonment, assault and battery,

malicious prosecution and all damages permitted by statute and case law, incurred by and on behalf of infant claimant WILSON REYES, , and punitive damages, by reason of his false arrest/false imprisonment, deprivation of Civil Rights, assault and battery, malicious prosecution, physical, verbal and emotional abuse, and the negligence, carelessness and recklessness committed by THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. COLLAZO, other police officers of the NYCPD 44th Pct. whose names and identities are presently unknown, and their agents, servants and/or employees.

3. The time when, the place where and the manner in which the claim arose: Upon information and belief, the claim arose on December 4, 2012 at approximately 10:00 AM while the infant claimant, WILSON REYES 7 years of age, was in his third grade class (3-314) at P.S. X114 located at 1155 Cromwell Avenue, Bronx, NY 10452. At said time, date and place, the 7 year old infant claimant, WILSON REYES, was caused to be removed from his class, placed into a room at said school, where he was met by NYCPD P.O. Collazo and other police officers who placed the 7 year old infant, WILSON REYES under arrest. The 7 year old infant, WILSON REYES was kept imprisoned in said room at PS X114 for 4 hours, handcuffed, and then taken by said NYCPD officers to the 44 Pct., where he was further false imprisoned for approximately another 6 hours. During the aforesaid false imprisonment, the 7 year old infant, WILSON REYES was handcuffed and verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by P.O. COLLAZO and other police officers/employees and agents of the NYCPD and 44th Pct., whose identities are presently unknown. The NYCPD, the NYCPD 44th Pct., PO COLLAZO, the said other police officers of the 44th Pct., their agents, and/or employees used excessive and unnecessary force, falsely imprisoned and falsely arrested the 7 year old child WILSON REYES and falsely accused him of being "a thief" and taking 5 dollars from another 7 year old child named "Seth" on November 30, 2012 after school; and falsely arrested and charged the 7 year old WILSON REYES as an adult with 2 counts of robbery under penal law Sections 160:05 and 160:10.

At all times following and during the false arrest and imprisonment, handcuffing and deprivation of the civil rights of the of the 7 year old child, WILSON REYES, P.O. COLLAZO and the other aforesaid unidentified NYC police officers and NYCPD, 44th Pct. and their agents and employees possessed information and knowledge that the robbery claims and accusations against the 7 year old child WILSON REYES were false and without merit as 7 year old WILSON REYES advised them, and same was corroborated by another 3rd grade child named "Javon" whom was interrogated by said police officers and who stated to them that he had taken the 5 dollars from "Seth" and the 7 year old WILSON REYES was not involved. (The aforesaid police officers also handcuffed and arrested "Javon"). The aforesaid false arrest and imprisonment of the 7 year old WILSON REYES was made without a warrant and without probable cause to believe a crime was committed.

The NYCPD, 44th Pct., P.O. Collazo and other unidentified police officers failed and refused to contact and notify the 7 year old child WILSON REYES' mother, FRANCES MENDEZ of said arrest and imprisonment; after approximately 5 hours of imprisonment of the 7 year old child where he was continuously handcuffed, verbally, physically and emotionally abused, the infant's mother FRANCES MENDEZ was permitted to see her child for only several minutes and then she was forced to leave the 44th Pct. and denied access to her child; the child's false imprisonment in handcuffs and the aforesaid abuse continued for another 5 hours; the 7 year old child WILSON REYES was denied and deprived of his civil rights both State and Federal, (including but not limited to 42USC § 1983, 1981 and the Fourth Amendment of the United States Constitution), was refused access to his mother and guardian, FRANCES MENDEZ, refused access to an attorney and was verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by P.O. COLLAZO, other NYCPD officers, the 44th Pct. and the NYCPD.

A photograph of the 7 year old child, WILSON REYES, handcuffed to a wall at the NYCPD 44th Pct. is annexed hereto and incorporated herein by reference. A copy of the NYCPD appearance ticket issued by P.O. COLLAZO, # 21911, 44th Pct. is annexed hereto.

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and the NYCPD 44th Pct., their agents, servants and/or employees and P.O. COLLAZO and other unidentified police officers of the 44th Pct. were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the 7 year old infant claimant himself and the child "Javon" described above; in falsely detaining, arresting and imprisoning the said 7 year old infant claimant in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incident; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the 7 year old child, WILSON REYES, for 10 hours, deprivation of his civil rights and denial of access to his mother and guardian; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, in a reckless disregard for the safety and welfare of said 7 year old infant claimant WILSON REYES; in that they failed to employ sufficient and adequate personnel and employees. That the city of NEW YORK, the NYCPD and the NYCPD 44th PCT., their agents, servants and employees on and before December 4, 2012 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the NYCPD, THE NYCPD 44th pct., and the Police officers of the 44th Pct., of

excessive and abusive force, lack of discretion and improper, unbecoming, reckless and negligent investigation practices and procedures, racial and socio-economic bias and physical force. See NY Times article published August 15, 2012 by Ray Rivera, annexed hereto and incorporated herein by reference. The aforesaid actions and conduct by P.O. COLLAZO, other unidentified police officers of NYCPD 44th Pct., their false arrest and imprisonment of 7 year old WILSON REYES, the isolating, imprisoning, handcuffing, denial and deprivation of his civil rights, their denial and refusing access of this 7 year old child to his mother for 10 hours while keeping him handcuffed to a wall, occurred pursuant to the practice of the NYCPD AND THE 44th Pct. of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. The CITY OF NEW YORK, NYCPD and NYCPD 44th PCT., failed to adequately and properly train P.O. COLLAZO and other aforesaid unidentified police officers of the 44th Pct., with a deliberate indifference to the Civil Rights of the infant 7 year old WILSON REYES and his mother, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. COLLAZO, their agents, servants and/or employees deprived the said claimants, the 7 year old child, WILSON REYES and his mother, FRANCES MENDEZ of due process and violated their Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations of the City and State of New York and the United States of America/Federal Government. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. COLLAZO, their agents, servants and/or employees maliciously assaulted and handcuffed the claimant, verbally abused and humiliated and embarrassed the 7 year old claimant, WILSON REYES and defamed his character. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. COLLAZO, their agents, servants and/or employees wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said 7 year old claimant, WILSON REYES, handcuffed him for extended hours of time, falsely arrested him and deprived him of his liberty, violated his civil rights, isolated him and deprived him access to his mother and guardian, denied him access to legal counsel and verbally physically and emotionally abused, defamed, humiliated and embarrassed this 7 year old child; all of which caused and inflicted serious injury and damage to the 7 year old claimant WILSON REYES, herein set forth.

On December 26, 2012 the CITY OF NEW YORK, Law Department, Office of the Corporation Counsel refused to file a petition and refused to file any charges against the infant claimant, 7 year old WILSON REYES.

4. The infant Claimant WILSON REYES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the

community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment and legal counsel. The 7 year old infant claimant, WILSON REYES, has suffered damages in the sum of ONE HUNDRED MILLION DOLLARS (\$100,000,000.00).

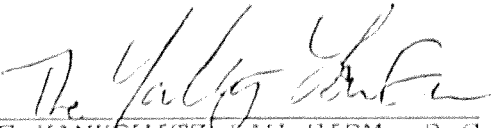
Infant Claimant WILSON REYES further claims punitive damages in the amount of ONE HUNDRED MILLION (\$100,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon the 7 year old infant claimant and the aforesaid deprivation of the Civil and Constitutional Rights of the 7 year old infant claimant, WILSON REYES, a 7 year old who was lawfully sitting in his 3rd grade classroom on December 4, 2012, by THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. COLLAZO, their agents, servants and employees.

The claimant, FRANCES MENDEZ sustained and continues to suffer pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress unconscionable deprivation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant FRANCES MENDEZ was caused to incur and continues to incur expenses for medical attention and treatment on behalf of her son, the infant claimant, WILSON REYES and she has suffered damages in the sum of TWENTY FIVE MILLION DOLLARS (\$25,000,000.00).

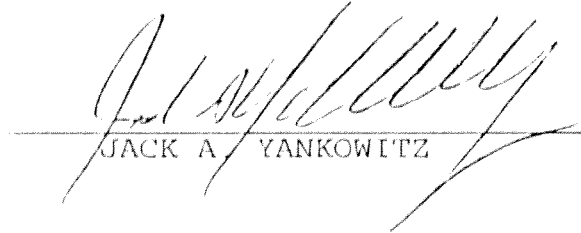
Claimant FANCES MENDEZ further claims punitive damages in the amount of TWENTY FIVE MILLION (\$25,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon her son, infant claimant WILSON REYES and the aforesaid deprivation of her Civil and Constitutional Rights and those of her son infant claimant, WILSON REYES, a 7 year old who was lawfully sitting in his 3rd grade classroom on December 4, 2012, by THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. COLLAZO, their agents, servants and employees.

The undersigned and claimants herein therefore present these claims for adjustment and payments. You are hereby notified that unless said claims are adjusted and paid within the time provided by law from the date of presentation to you, the claimants intend to commence an action on these claims.

Dated: Great Neck, New York
January 25, 2013



THE YANKOWITZ LAW FIRM, P.C.
Attorney for Claimant
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200


JACK A. YANKOWITZ

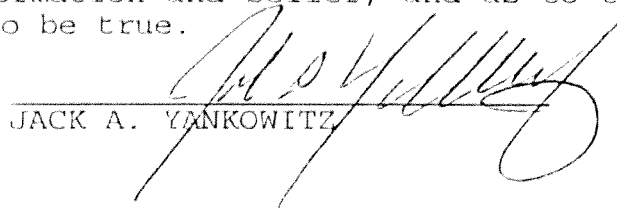
VERIFICATION

STATE OF NEW YORK)

ss.:

COUNTY OF NASSAU)

JACK A. YANKOWITZ, being duly sworn, deposes and says that deponent is the attorney for the above-named claimants; deponent has read the foregoing NOTICE OF CLAIM and know its contents; the same is true to deponent's knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters deponent believes it to be true.


JACK A. YANKOWITZ

Sworn to before me on
January 25, 2013


NOTARY PUBLIC

MARIELA DEEMAN
NOTARY PUBLIC, STATE OF NEW YORK
JANUARY 25, 2013
OFFICE OF THE CLERK OF THE COUNTY
CLERK OF THE COUNTY OF NASSAU
JANUARY 25, 2013



 APPEARANCE TICKET - FAMILY COURT
(Subsequent to Family Court Act of 1991)
CITY OF NEW YORK, COUNTY OF []

(1)

(Child)

(Parent/Person Legally Responsible for Child's Care)

(Address)

(Address)

(Signature)

YOU AND EACH OF YOU ARE HEREBY DIRECTED TO APPEAR on the
____ day of _____, 20____, at _____
(A.M.) (P.M.) at the probation service of _____ County, at
(Street and City Address) _____,
New York, in connection with the following crime(s) allegedly committed by the child, who is
_____ years of age:

(Include date, time and place)

*On 10/10/01 at
10:00 AM at
100-100 100th St
Roosevelt Island*

*1st Criminal Offense
in the 1st Degree*

Date of Issuance: *10/10/01*

Precinct of Record: *100-100*

Name of Issuer: *Det. [Signature]*
Print: (Name, Rank, Shield No., Agency, Command)

Arrest Number: *100-100101* Borough: *Manhattan*

Signature of Issuer: *[Signature]*
(Police Officer) (Peace Officer)
(Probation Service Director) - (Designee)
(Administrator of Detention Facility) - (Designee)

DISTRIBUTION: WHITE - Respondent BLUE - Parent/Person Legally Responsible for Child's Care
PINK - Complainant/Officer BUFF - Probation Service GREEN - Precinct File

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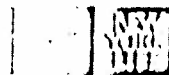
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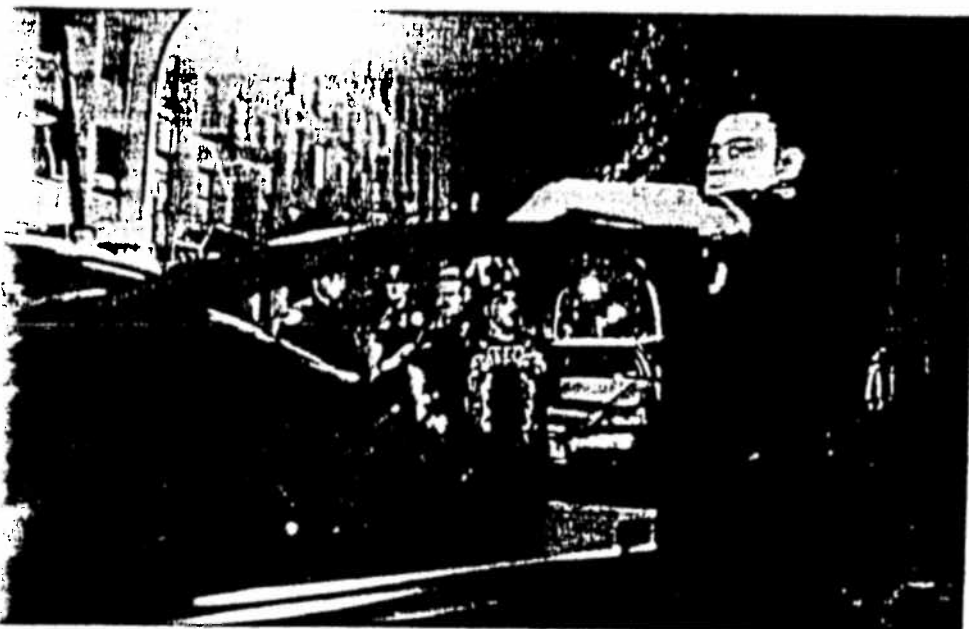
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Pockets of City See Higher Use of Force During Police Stops



Robert Glatank for The New York Times

Two precincts in the Bronx have higher rates of violence during police stops than other precincts in the city. Here, a man is arrested outside the building where he lives for playing loud music.

By RAY RIVERA
Published: August 15, 2012 273 Comments

The crowded neighborhoods of the West Bronx come alive at night. Residents, young and old, cluster around door stoops. Teenagers till playground basketball courts. Police officers from the nearby 44th and 46th Precincts patrol the streets, from time to time stopping and frisking young men, mostly black and Latino. And when they do, statistics show, they use physical force far more often than the police do anywhere else in the city.

GRAPHIC: In Some Parts of the City, a Common Police Practice

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The New York City Police Department has come under increased scrutiny in recent years over the racial disparities and the sheer volume of street stops it makes under its "stop, question and frisk" policy, a crime-fighting technique under which officers stop people they reasonably believe are committing or about to commit a crime. Last year, the police made a record 680,000 stops, more than 80 percent of those

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3. OPINION
The Power of Concentration



4. NICHOLAS D. KRISTOF
Looking for Lessons in Newtown



Police stop for The New York Times

people black or Latino. A federal judge this summer approved a class-action lawsuit accusing the department of using race as a basis for the stops.

But often overlooked is how frequently police officers use some level of physical force in these encounters. People who have been stopped say that if they show the slightest bit of resistance, even verbally, they can find themselves slammed against walls, forced to the ground and, on rarer occasions, with officers' guns pointed at their heads.

The police used some level of physical force in more than one in five stops across the city last year, according to an analysis by The New York Times. In the West Bronx, the rate was more than double that. Yet the high level of force seldom translated into arrests, raising questions among black and Latino leaders about whether officers were using enough discretion before making the stops in the first place, much less before resorting to force.

The four precincts with the highest use of force — the 32nd in Upper Manhattan, the 44th and 46th in the Bronx and the 115th in Jackson Heights, Queens — all include or have included what the police call “impact zones,” violent pockets that the police routinely flood with officers, often in their first assignment out of the academy, in an effort to suppress crime. That combination of putting inexperienced officers in the worst neighborhoods may be one reason that the use of force is so high, residents said. And the encounters, they added, while apparently not leading to a higher number of physical injuries, do create lasting feelings of resentment and a distrust of officers.

“I feel sometimes a lot of the rookies that come out don’t have the proper training, and it’s actually a fear factor on their part,” said Felipe Carrion, 42, who runs a barbershop on the Grand Concourse in the 44th Precinct. “They’re actually afraid of getting hurt themselves.”

Two months ago, Mr. Carrion said, he was standing outside his shop when two officers confronted him.

“They asked me what I was doing in front of the shop and I said I was the owner,” he recalled. “They said, ‘No, you’re not. You’re not the owner. Let’s see some ID.’ ”

But as Mr. Carrion reached for his identification, the officers shoved him against the wall.

“I was like, ‘You’re using police brutality. You’re not supposed to be doing that. Let me show you ID.’ ”

The officers calmed down after he showed them his identification, but not before shoving him against the wall again and searching him, he said. Both officers, he said, “looked like they were right out of the academy.”

The Times interviewed dozens of people in the 32nd, 44th, 46th and 115th Precincts who told stories of physical encounters with the police. Many of the people interviewed said they had been stopped multiple times without any force being used. But if they displayed



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On Guns, America, and, Out



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any resistance, even verbally, like asking why they were being stopped, the police sometimes got rough. Corroborating their stories is difficult because police data does not name those stopped or the officers making the stops.

Police officials defend the stops as an effective crime deterrent. They played down The Times's findings about use of force, saying that the only reason the four precincts had such high levels was because officers there checked a box marked "hands on suspect" more often on the form they are required to fill when conducting stops. Other boxes include "suspect on wall" and "suspect on ground." Paul J. Browne, the department's chief spokesman, said "hands on suspect" was a subjective category that "may be reported anytime the officer's hand comes into physical contact with the subject."

"This could occur during a frisk or to guide a suspect to the sidewalk," he wrote in an e-mail.

But John A. Eterno, a former New York Police captain who used to train officers on the stop-and-frisk tactic, disputed that, saying officers are trained to check the box only "whenever some sort of force is used to control the situation, or to make sure that either the officer's safety or somebody else's safety is maintained."

Dr. Eterno, who retired in 2003 and is now a criminologist at Molloy College on Long Island, added, "You could frisk a person without any use of force at all."

The 40th Precinct has about 128,000 residents and includes the predominantly black and Hispanic neighborhoods of University Heights, Morris Heights and Fordham. Officers used force in 53 percent of stops last year, the highest rate of any of the city's 76 precincts, according to The Times's analysis. Yet, just 3 percent of stops that involved force resulted in an arrest — the lowest rate in the city. By contrast, officers in the 111th Precinct in the Bayside neighborhood of Queens, which is 87 percent white and Asian, were the least likely to apply force, using it in 4.7 percent of stops. Yet 40 percent of those stops ended in an arrest.

It was in the 40th Precinct that Christopher Graham said he was stopped by two officers last winter as he and a friend were leaving his friend's apartment building. The officers guided them to the wall of the building and began frisking them, Mr. Graham, 19, said. When the officer got to his groin area, Mr. Graham flinched, he said.

"I said, 'Whoa, what are you doing?'" Mr. Graham recalled. "The cop put his hand on the back of my cap and, boom, smashed my head into the wall of the apartment, for no reason."

The resulting gash sent blood gushing down his cheek and took six stitches to close, he said. Mr. Graham, who was neither arrested nor issued a summons in the stop, still bears a scar next to his left eye.

Over the previous six years through 2011, officers in the 44th Precinct led the city in force used, applying it in 54 percent of all stops, more than double the city average of 23 percent over that period. In 2010, officers there used force in more than 6 out of every 10 stops. The 32nd Precinct in Central Harlem and the 115th Precinct in Jackson Heights and Corona, Queens — also predominantly black or Hispanic — had among the city's highest rates as well. Yet in each of these precincts, arrests when force was used were lower than the city average of 13 percent.

City Councilman Fernando Cabrera, who represents the West Bronx, called the numbers alarming.

"If indeed they were resisting arrest, and if there were any other kinds of crimes being committed that would call for that kind of aggressiveness, you would expect to see a correlation in arrests," he said. "Instead, we see the total opposite."

Police officials also noted that complaints filed last year with the [Civilian Complaint Review Board](#), an independent panel that investigates complaints of excessive force, were at the lowest level since 2003, and only a tiny fraction of those were substantiated. But many people interviewed by The Times said they had either never heard of the board, or did not believe complaining would do any good. Those interviewed said the use of force seldom led to physical injuries.

The presence of impact squads in high-crime areas is not enough to explain why force is used so often in some precincts. The 73rd Precinct in Brownsville, Brooklyn, has the city's highest violent crime rate, and the police stop residents at nearly three times the rate as in the 44th and 46th Precincts. Yet the police used force in only 1.4 percent of stops in Brownsville last year, well below the city average.

State Senator José R. Peralta, a Democrat of Queens whose district includes the 115th Precinct, said he was already concerned by the high number of stops in the area. But he said he was surprised to learn, from a Times reporter, how many of those encounters involved physical force.

"Those are very troubling statistics," he said. The community has some pockets of high crime, he added, but the overall amount does not correspond "to the extent of the force being used."

Reporting was contributed by Daniel Krieger, Randy Leonard, Sarah Maslin Nir, Nate Schweber and Tom Torok.

A version of this article appeared in print on August 16, 2012, on page A17 of the New York edition with the headline: Police-Stop Data Shows Pockets Where Force Is Used More Often.

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In the Matter of the Claim of
WILSON REYES, an Infant, by his
mother and natural guardian
FRANCES MENDEZ, and FRANCES MENDEZ,
individually,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, THE NEW YORK CITY POLICE DEPARTMENT
44TH PRECINCT, P.O. COLLAZO, SHIELD # 21911
AND OTHER POLICE OFFICERS OF THE 44TH PCT. WHOSE
NAMES AND IDENTITIES ARE PRESENTLY UNKNOWN

NOTICE OF CLAIM

THE YANKOWITZ LAW FIRM, P.C.

Attorneys for Claimants
175 East Shore Road
Great Neck, NY 11023
(516)622-6200

TO:

In the Matter of the Claim of
WILSON REYES, an Infant, by his
mother and natural guardian
FRANCES MENDEZ, and FRANCES MENDEZ,
individually,

-against-

THE CITY OF NEW YORK,
NEW YORK CITY BOARD OF EDUCATION, P.S. X114 AND
OLIVIA FRANCIS-WEBBER

NOTICE OF CLAIM

THE YANKOWITZ LAW FIRM, P.C.

Attorneys for CLAIMANTS

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Great Neck, NY 11023
(516)622-6200

TO:

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILSON REYES, infant by his mother and natural guardian,
FRANCES MENDEZ and FRANCES MENDEZ, individually,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY BOARD and/or DEPARTMENT OF
EDUCATION, OLIVIA FRANCIS -WEBBER, in her individual and official capacities, NEW
YORK CITY POLICE DEPARTMENT, NYC P.O. "JOHN" COLLAZO (first name being
fictitious and presently unknown), IN HIS individual and official capacities, NYC P.O. "JOHN
DOE" (name being fictitious and presently unknown) in his individual and official capacities',

Defendant(s)

SUMMONS AND VERIFIED COMPLAINT

THE YANKOWITZ LAW FIRM, P.C.

Attorneys for PLAINTIFFS

175 East Shore Road

Great Neck, New York 11023

(516) 622-6200

TO: